

# **Program Executive Office - Defense Healthcare Management Systems (PEO DHMS)**

## **Deployment Solutions**

### **Performance Work Statement (PWS)**

#### **1. Background**

The Program Executive Office - Defense Healthcare Management Systems (PEO DHMS) is responsible for delivering advanced health IT solutions to the Department of War (DoW), the Department of Veterans Affairs (VA), the United States Coast Guard (USCG), North Atlantic Treaty Organization (NATO)/Coalition partners, and other federal partners including efforts coordinated through the Federal Electronic Health Record Modernization (FEHRM) office. Within its portfolio, PEO DHMS oversees three critical programs: DoD Healthcare Management System Modernization (DHMSM), Joint Operational Medicine Information System (JOMIS) and Enterprise Intelligence and Data Solutions (EIDS). These programs collectively enhance healthcare delivery, operational medicine capabilities, and medical readiness across diverse environments.

DHMSM was established to acquire and field a configurable and scalable modernized Electronic Health Record (EHR) system to replace DoW legacy healthcare systems. In support of this mission, DHMSM acquired an integrated inpatient/outpatient Commercial EHR solution known as MHS GENESIS. The DHMSM portfolio extends beyond MHS GENESIS, incorporating a broader set of solutions to create a single, unified EHR for the federal health community. Through a suite of clinical applications and products, DHMSM provides comprehensive health management, advanced data applications, and improved usability, supporting priorities such as telehealth, population health analytics, and a user-facing patient portal. The DHMSM Program Management Office (PMO) manages the integration of these business processes and clinical workflows to ensure user adoption and a seamless experience throughout the full continuum of care.

JOMIS provides warfighters with technologies to make life-saving and critical mission decisions in operational medicine (OpMed) environments. In support of this mission, JOMIS develops, deploys, and manages OpMed products that allow for documentation of patient care, transmission of patient care data through all roles of care, medical readiness tracking and aggregation of medical Command and Control Situation Awareness (C2SA) data. The JOMIS products are meant to be used as an integrated suite of products that work together with DHMSM and EIDS products to inform the longitudinal health record and conduct aggregated medical reporting and simulations to support C2SA. The suite includes but is not limited to OpMed Care Delivery Platform (CDP), Battlefield Assisted Trauma Distributed Observation Kit - Joint (BATDOK-J), Medical Hub (MedHUB), and Theater Blood-Mobile (TBLD-M). As new capabilities are identified, new products or capabilities may need to be deployed, once developed. JOMIS users are deployed forces across the globe supporting all roles of care in connected and disconnected operational, austere, and forward-deployed locations. To deploy and train OpMed products to the field, JOMIS collaborates with their Service partners to provide a variety of different

deployment and training methods based on each individual site or unit, to include low-to-no touch deployment and training.

The EIDS PMO supports the strategic goals of the MHS and facilitates informed decision-making through the delivery of robust information services and data in a timely, relevant, and actionable manner. They deliver, connect, and curate data across a diverse data ecosystem in support of Military Health, readiness, federal health data integration, and innovation. EIDS provides seamless data services and decision support for clinicians, patients, beneficiaries, analysts, researchers, and DoW leadership to support improved patient care. EIDS provides service delivery and product line management, offering more than 100 products and services to DoW, Defense Health Agency (DHA), federal partners, academic, and research communities. They focus on providing the right data at the right time to the right person to drive organizational insights and better patient outcomes. The primary capability supported by EIDS is the Military Health System Information Platform (MIP), which is the largest secondary repository of health-related data in the DoW. It provides self-service access to high trust, governed data and enables traditional reporting and dashboarding capabilities in a secure, cloud-based platform. Users are able access and analyze data within a single, cohesive environment with a collaborative user community.

Due to the growing demand for its product portfolio, PEO DHMS has expanded its focus to include the deployment to operational locations, and additional federal partners, as well as specialized environments where standard network connectivity is limited or unavailable.

## **2. Purpose & Scope**

This is a non-personal services contract to provide all services and materials necessary to support and execute the on-demand deployment of any product(s) within the DHMS portfolio and related or supporting components. This includes program management, deployment planning and execution, hardware delivery and connectivity, product connectivity and interface validation, user enablement services, data management and migration.

Services are applicable to Continental United States (CONUS) and Outside Continental United States (OCONUS) locations, covering various roles of care and facility types as specified in individual task orders<sup>1</sup>.

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<sup>1</sup> The Department anticipates that the user base, supported organizations, and operational footprint may expand over the period of performance. While the scope and timing of any such expansion cannot be precisely defined at this time, offerors should be aware that future requirements may include support for periods of increased operational tempo and additional participating entities consistent with evolving mission needs.

### 3. Desired Outcomes/Tasks/Objectives

This section outlines the desired outcomes, high-level tasks, and core objectives for the successful deployment of products and integrated systems to hospital (fixed facility) and field unit (expeditionary) environments under this Indefinite Delivery, Indefinite Quantity (IDIQ) contract. The contractor shall be responsible for all activities necessary to ensure a seamless transition from project initiation to full operational capability at each deployment site with minimal disruption to ongoing operations. The overarching goal is to deliver a fully functional and adopted solution that ensures the seamless and accurate transmission of data through all roles of care and meets the mission needs of each location. This is critical for updating patient health records and aggregating data for C2SA reporting.

Each task order will specify the exact scope, schedule, and performance criteria for a given deployment. The objectives listed herein describe the full range of capabilities that may be required across the full range of military operations.

#### 3.1 Program Management

As part of the Deployment Approach (A003) and the Implementation Plan (A010), the contractor shall provide a program management framework to ensure deployment efforts are governed by consistent standards of quality, risk management, and fiscal discipline. This framework shall provide the Government with full transparency into project performance and ensure the contractor is accountable for all outcomes. The contractor shall successfully execute all work under this contract, including the necessary processes and tools to effectively manage cost, schedule, and performance/resources. Specific requirements, deliverables, and reporting frequencies for each activity will be defined within individual task orders.

The contractor shall designate a primary Program Manager (PM) who will serve as the Government's single point of contact and be responsible for the overall management of the contract. While the contractor may designate other points of contact at the task order level, the primary PM is the one individual authorized to act on behalf of the contractor for all matters related to this contract. This primary PM is ultimately responsible for coordinating all contract performance, including resource allocation, risk mitigation, and ensuring clear communication with the Government's Contracting Officer's Representative (COR).

#### Core Management Functions:

- **Support for Governance and Stakeholder Engagement:** The contractor shall provide dedicated support for all Government-led governance bodies (e.g., Informatics Steering Committee or OpMed IT Steering Committee). The contractor's role is to facilitate informed decision-making by:
  - **Preparing and Facilitating Materials:** Developing meeting agendas, presentation materials (D001), data-driven analyses, and expert

recommendations on deployment strategies for Government review and consideration.

- **Documenting and Tracking Outcomes:** Recording meeting minutes (D002) and tracking action items and key decisions made by the Government-led committees.
- **Executing a Stakeholder Communications Plan:** Developing and executing a comprehensive communications plan that identifies all key stakeholder groups and defines the contractor's strategy for disseminating information about project status, risks, and changes as directed by Government leadership.

- **Risk and Issue Management:** The contractor shall develop and actively maintain a risk register. This includes creating a comprehensive Contingency Plan to mitigate identified risks, such as data loss, network failures, or schedule delays, ensuring mission-critical operations are protected for the task order.
- **Quality and Change Management:** The contractor shall implement a robust Quality Management process to ensure all deliverables meet or exceed contract standards. The contractor shall develop and maintain an effective Quality Control Plan (QCP) (CDRL A001), which outlines quality procedures and includes a self-inspection and internal coordination plan. The QCP shall establish a formal Change Control process to manage, document, and validate any modifications to the system or its configuration post-deployment. Required revisions must be made within 5 working days.
- **Staffing Plan:** The contractor shall develop, maintain, and deliver a Staffing Plan (D003) that details the roles and labor categories required to successfully execute all tasks specified in the task order.
- **Contract Reporting and Administration:** The contractor shall manage the timely development and submission of all contract deliverables as delineated in the PWS and Sections 34-37.
- **Financial and Contract Reporting:** The contractor shall provide a Monthly Progress Report (D006) detailing performance against schedule, budget, and objectives.
- **Kick-Off Meeting:** The contractor shall conduct a kick-off meeting with the Government for each awarded task order. The purpose of this meeting is to ensure a shared understanding of the task order requirements, establish lines of communication, and review the contractor's planned approach.

## 3.2 Deployment Planning and Execution

The contractor shall employ an adaptable framework for planning and executing all deployment activities or events to include initiation, planning, configuration, validation, implementation, stabilization, and transition. This framework ensures that each project, regardless of scale or location, moves from concept to sustained operation in a deliberate and controlled manner. The contractor will receive a tested product ready for deployment that requires configuration, validation, and implementation.

### 3.2.1 Initiation and Planning

During initiation and planning, the focus shall be on discovery and creating the blueprint for successful deployment. The desired outcome is a complete and actionable blueprint for deployment, including a strategic approach, a readiness assessment, and a detailed schedule that provides a clear and executable roadmap for successful implementation.

- **The Deployment Approach (CDRL A003)** is the foundation for the Implementation Plan (CDRL A010). The contractor shall provide the overall approach and methodology for deployment, continuity and logistics, training, user adoption, change management, and communications across multiple environments/networks, fixed/expeditionary facilities for multiple products, and with different federal partners (DoW and non-DoW). The contractor shall include any potential opportunities, risks, issues, and dependencies for each area, and mitigation plans.
- **Deployment Readiness Assessment (D008):** The contractor shall provide a Deployment Readiness Assessment, which is a formal and systematic evaluation used to determine if an organization, its users, and the technology itself are fully prepared for a successful "go-live" event. This assessment is a comprehensive review that measures preparedness against a predefined set of criteria, moving beyond just technical functionality to include people, processes, and support systems. The contractor shall identify risks, gaps, and potential points of failure that could jeopardize the deployment's success, disrupt operations, or hinder user adoption.
- **Implementation Plan (CDRL A010):** Based on the Readiness Assessment, the contractor shall develop, maintain, and actively manage an implementation plan, to include a detailed Integrated Master Schedule (IMS) (CDRL A011). The Implementation Plan is the detailed tactical execution plan that operationalizes the approach outlined in the Deployment Approach.
- **Data Collection (D009):** As specified by the task order, the contractor shall facilitate the timely and accurate collection of all data required to configure the product, hardware, equipment, and interfaces for deployment (Product Configuration Data (D009)).

### 3.2.2 Product Configuration, Validation, and Implementation

As specified in the task order, the contractor shall perform configuration, validation, and implementation activities required for deployment, culminating in the formal cutover event. DHMS products may include hardware and/or component installation and configuration across various networks. This may include user role assignment, security permissions, and system-level parameters. The desired outcome is a fully integrated and validated product where all functionality and data are confirmed to be accurate and operate as intended, ensuring the product is ready for operational use.

#### **3.2.2.1 Product Validation**

The contractor shall develop and execute a Product Validation Plan (D012) for all products configured as specified in the task order. The desired outcome is to verify the configured product matches the specifications outlined in the task order.

- Validate the product(s) functionality, which may include integration with both internal and external clinical, financial, and administrative systems and interfaces, to ensure it operates as intended under expected conditions, as specified in the task order.
- The contractor shall complete data validation and reconciliation as designated in the task order.

#### **3.2.2.2 Network Integration and Configuration**

The contractor shall ensure seamless integration with existing network infrastructure, validating bandwidth requirements and testing all network configurations and firewall rules. As applicable, the contractor shall deploy and configure products to operate autonomously in Disconnected, Intermittent, and Limited (DIL) environments, encompassing the full range of operational platforms from server-based theater hospital products to mobile, point-of-injury data capture solutions running on handheld devices and wearable sensors. The desired outcome is a fully configured and integrated product that complies with applicable DoW cybersecurity requirements.

#### **3.2.2.3 Hardware Delivery, Installation, and Configuration**

The contractor shall manage the procurement, end-to-end logistics using DD Form 1149 (D011), installation, and network integration of all required hardware, which shall be contractor-furnished and not Government Furnished Equipment (GFE), as delineated in the task order. The desired outcome is that all physical components are identified, delivered, installed, connected, and functioning as intended in their designated operational environment based on Government requirements.

#### **3.2.2.4 Medical Device Configuration and Validation**

The contractor shall ensure that all required medical devices can securely and reliably connect to and interoperate with the newly deployed product. The desired outcome is a fully validated, integrated environment where data flows accurately and securely between medical devices and the central system, ensuring patient safety and quality of care.

#### **3.2.2.5 Data Management and Migration**

As part of the Deployment Approach (CDRL A003) and Implementation Plan (CDRL A010), the contractor shall be responsible for the secure and accurate management, migration, and validation of all clinical and administrative data as specified in the task

order. The desired outcome is for all necessary data to be validated and securely transferred to the new product with its integrity intact, ensuring continuity of care.

- For fixed facilities, execute the Extract, Transform, and Load (ETL) process, potentially by replicating data to a parallel data center prior to a planned cutover.
- For field units, perform "Data Seeding" as a critical pre-deployment task. This involves pre-loading the ship's or unit's local server with essential data such as patient demographics, formularies, and clinical templates to enable autonomous operation.
- Utilize secure data migration methods, such as encrypted transfer protocols or the physical transport of encrypted backup media.

### **3.2.3 Cutover, Stabilization, and Transition**

The contractor shall manage the activities associated with cutover to the new product, stabilize the new environment, and ensure a seamless hand-off to sustainment teams. The desired outcome is to have a seamless transition from one product or system to another with minimal impact on healthcare operations.

- **Cutover:** The contractor shall manage the coordination and communication of the transition to the new product.
- **Post-Deployment Stabilization Support:** The contractor shall implement and manage a multi-tiered user support structure to provide rapid and effective assistance, including on-site "at-the-elbow" and remote support as defined in the task order.
- **Post-Deployment Stabilization Report (D010):** The contractor shall provide a daily report during the Post-Deployment Support period as defined in the task order. This report will include status of tickets, devices, user support, and other key indicators of a successful transition.
- **Transition to Sustainment:** The contractor shall execute a formal transition plan to hand off the fully deployed and stabilized product(s) to the Government sustainment and operations teams.

## **3.3 User Enablement Services**

The contractor shall provide all necessary personnel, supervision, and materials required to perform a full range of training and user adoption services in support of the deployment of DHMS products. The contractor must possess the capability to perform the services described in the sections below.

### **3.3.1 Human Systems Integration (HSI) Alignment**

The contractor shall ensure that all training, adoption, and support services are aligned with the principles of Human Systems Integration (HSI) as outlined in DoDI 5000.95. The objective is to ensure that the contractor's services contribute to a total system that is effective, suitable, and safe for human use. The contractor shall maintain a working

268 knowledge of HSI principles and processes, and leverage HSI principles to identify and  
269 help mitigate barriers to user performance and acceptance.

### 270 **3.3.2 Consideration of Operational Environments**

271 The contractor shall possess the capability to provide training, adoption, and user support  
272 services to users in operational environments, including theaters of war and other  
273 locations with DIL network connectivity. The specific requirements for such support will  
274 be detailed in individual task orders. When providing services for these environments,  
275 the contractor shall ensure all resources, methods, and support models are operationally  
276 suitable to achieve optimal staff efficiency at the lowest possible barrier to adoption. The  
277 focus shall be on user self-sufficiency and mission effectiveness in a contested or austere  
278 environment.

### 279 **3.3.3 Consideration of Global User Community**

280 All services described herein shall be available to a global user base. The contractor shall  
281 deliver consistent, prompt, and effective support to personnel regardless of their  
282 geographic location or time zone. All planning, staffing, and execution strategies must  
283 account for the complexities of worldwide operations, including but not limited to,  
284 varying network conditions, local command structures, and cultural considerations.

### 285 **3.3.4 Training**

286 As part of the Deployment Approach (CDRL A003) and Implementation Plan (CDRL  
287 A010), the contractor shall design, develop, and execute a comprehensive training  
288 program to ensure users are familiar with the product deployed in the task order. For the  
289 Federal EHR, proficiency is achieved when a user can consistently and confidently  
290 complete role-specific workflows and pass course-specific competency assessments. For  
291 JOMIS products, the training shall be intuitive, user-centric, and outline a joint approach  
292 for collaborative execution with the Services. The training program should also provide  
293 schedules, risk assessments, and mitigation plans for each product and site in a timely  
294 manner. The Government will specify the required materials and target audiences in each  
295 task order. The desired outcome is a confident and competent user base capable of  
296 leveraging the product(s) full capabilities effectively and efficiently.

#### 297 **3.3.4.1 Training Program Development**

- 298 • The contractor shall develop a formal training and orientation plan that identifies  
299 all relevant user groups, personas, and their specific learning needs.
- 300 • The contractor shall create training materials, including instructor guides, user  
301 manuals, quick reference guides (tip sheets), computer-based training, micro-  
302 learning, and in-application guidance such as tooltips and contextual help directly  
303 within the tool (CDRL A002).
- 304 • The contractor shall identify and train designated "super users" from experienced  
305 staff who will participate in testing and provide peer support.

- As specified in the task order, the contractor shall establish a dedicated training environment that mirrors production and mimics real-world configuration, workflows, and product interactions to allow hands-on practice.

#### **3.3.4.2 Training Delivery**

- The contractor shall provide qualified instructors to deliver and manage end-to-end training for a diverse and geographically dispersed user base. Instruction must be tailored to the specific task order and operational environment, accommodating all echelons of care. To build user confidence in newly deployed products, the training shall incorporate role-based simulations and "day-in-the-life" scenarios for users throughout the full continuum of care.
- Deliver blended, role-based training for all impacted functional and technical/system admin users that combines various methods like instructor-led training (both virtual and in-person), self-paced e-learning, and hands-on simulations. Training must be tailored to the specific workflows and responsibilities of the user.
- The contractor shall manage all end-to-end logistics for training delivery as specified in the task order, including user assignment, scheduling, and tracking. A key component will be conducting "train-the-trainer" sessions to enable government personnel to provide ongoing sustainment training.
- Training shall be delivered via multiple methods, including Instructor-Led Training (ILT), Virtual Instructor-Led Training (VILT), Computer-Based Training (CBT), in person support, and self-guided learning. To ensure a smooth transition, the contractor will identify critical user groups to maintain key functions during cutover and provide on-site or virtual support for end-users during and after deployment.
- The contractor shall identify a method for tracking user proficiency. As specified in the task order, they will deliver a User Training Completion Report (D007) to measure progress. A final report on all training activities is also required, which will include attendance records, a roster of untrained users, a summary of user feedback, and lessons learned.

#### **3.3.5 Adoption and Change Management**

The contractor shall provide and execute robust user adoption and change management support to facilitate a smooth transition and foster buy-in. The overarching goal is to prepare the organization for change, drive user acceptance and adoption, and demonstrate the realization of measurable value from the newly deployed product(s). The contractor is responsible for the execution of all change management activities to ensure the successful integration of the new product(s) into the organization's daily workflows and culture, leading to high levels of user satisfaction and the realization of the product's intended benefits.

### 3.3.5.1 Change Management and Leadership Engagement

- As part of the Deployment Approach (CDRL A003) and Implementation Plan (CDRL A010), develop and execute a comprehensive Change Management and Adoption Plan that outlines the approach for managing the human side of the transition. The contractor shall be responsible for managing all activities outlined in the plan, leveraging proven industry best practices and models for both its development and execution.
- Conduct a thorough stakeholder and change impact analysis and use its findings to actively manage stakeholder engagement, mitigate resistance, and adapt to evolving organizational needs throughout the transition. Use readiness surveys to gauge organizational preparedness.
- Actively engage Government leadership to secure strong executive and clinical buy-in. The contractors shall lead the effort to empower and equip Government identified physicians and staff champions to take a leadership role in the transition.
- Implement and manage a dedicated communication and engagement strategy, as applicable, ensuring consistent and effective communication throughout the task order.

### 3.3.5.2 Communication and End-User Engagement

- Design and execute a tailored communication and engagement plan to keep all stakeholders informed, build awareness, and address concerns.
- Create, disseminate, and maintain communication products that build awareness of the "why" behind the change, broadcast key project milestones, and celebrate successes to build momentum and positive sentiment. The contractor is responsible for the full lifecycle of these materials.
- Actively and continuously manage the engagement of end-users throughout the design, planning, and implementation process, ensuring their feedback is documented and incorporated to create effective workflows.
- Design, schedule, and conduct dedicated engagement sessions for supervisors and organizational leaders. The contractor shall develop and deliver leader-specific talking points, FAQs, and coaching materials to equip leaders to champion the change and manage resistance.
- Establish, manage, and host regularly scheduled, informal "Office Hours" and open forum sessions (both virtual and in-person) as required by the task order. The contractor is responsible for staffing these sessions and providing immediate, transparent answers.
- Facilitate engagement activities (e.g., focus groups, user interviews, direct observation) to assess organizational readiness and identify potential barriers to user acceptance. The contractor shall then analyze these findings to develop and implement targeted interventions (e.g., additional demos, specialized communication) to address identified barriers and ensure all user groups are successfully supported.

### 3.3.5.3 Adoption Measurement and Reinforcement

- Implement and manage the tools and processes to monitor product usage and user proficiency post-cutover. The contractor shall define, track, analyze, and report on metrics demonstrating measurable value, user satisfaction, and user acceptance.
- The contractor shall be responsible for delivering regular performance reports that analyze Key Performance Indicators (KPIs) tied to operational efficiency (e.g., reduced patient documentation time, improved clinical workflow compliance) and user sentiment. These reports will serve as the primary evidence of a successful change initiative for the task order.
- The contractor shall design and conduct user satisfaction surveys and lead after-action reviews. The contractor shall then analyze the findings to produce detailed reports with actionable recommendations and lessons learned to guide future deployments and continuous improvement efforts.

## 4. Period of Performance (PoP)

The PoP shall be for one (1) base year of 12 months and four (4) 12-month option years.

## 5. Transition-in Period

The Transition-in period is 30 days from task order award date. Transition-in performance is defined as the period for the contractor to integrate and provide onboarding activities. During the transition-in period, the contractor shall develop a Transition-in Plan (CDRL A004) and a Staffing Plan (D003) to demonstrate how all contract requirements will be met and ensure incoming personnel are functionally trained and qualified on the full performance start date. Personnel shall be trained and qualified within 30 days.

## 6. Transition-out Period

The contractor shall provide information and cooperation to affect an orderly and efficient transition to a successor. The contractor shall develop a Transition-out Plan (CDRL A005) supporting outgoing transition support and provide the plan 60 days prior to the end of the contract or task order. Upon approval of the Transition Plan, the contractor shall commence transition out activities working with the incoming contractor or Government entity. Additionally, the contractor shall provide formal coordination with Government staff and successor staff and management. The Transition Plan shall specify a training program and a date for transferring responsibilities for each division of work described in the plan, including the delivery of all final documentation. The contractor shall provide an adequate number of experienced personnel during the phase-in, phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency. The Transition Plan shall include, but is not limited to:

- 425 1. Coordination with Government representatives.  
426 2. Review, evaluation, and transition of current support services.  
427 3. Turn-in of all Government keys, ID/access cards, and security codes. The  
428 contractor shall comply with transition-out requirements of the DHA for  
429 contractors who have been issued a CAC or who generate “records”, as defined  
430 by DoW (records manual), including DoW-directed disposition of records, and  
431 others displayed on the In/Out (I/O) Processing Portal.

## 432 **7. Place of Performance**

433 Specific places of performance will be identified in individual task orders issued under  
434 the contract. The contractor shall comply with host nation agreements for performance of  
435 any work in OCONUS locations and as specified in individual task orders.

## 436 **8. Hours of Operation**

437 The contractor must maintain an adequate workforce for the uninterrupted performance  
438 of all tasks to be defined within each task order.

## 439 **9. Recognized Federal Holidays**

440 Unless otherwise defined in the task order, contractors are not required to perform  
441 services on the following holidays:

442 New Year’s Day

443 Martin Luther King Jr.’s Birthday

444 President’s Day

445 Memorial Day

446 Juneteenth Day

447 Independence Day

448 Labor Day

449 Columbus Day

450 Veteran’s Day

451 Thanksgiving Day

452 Christmas Day

453 **10. Travel**

454 Contractor travel requirements will be defined within each task order.

455 **11. Other Direct Costs (ODC)**

456 The contractor shall be authorized to bill ODCs as established within the task order.  
457 These costs must be preapproved by the COR and include costs applied to the contract,  
458 except for the cost of material or labor. The cumulative reimbursable ODC amount shall  
459 not exceed the relevant Contract Line Item Number (CLIN) obligated amount.

460 **12. Status of Forces Agreements (SOFA)**

461 It is possible for some contract activity to occur at OCONUS locations. In the event such  
462 support is required, if the country in which contractor support will occur has a SOFA  
463 with the United States, it is critical for those designated for travel to receive authority to  
464 operate as a contractor for the U.S. Military in those countries. The Government will  
465 identify SOFA points of contact (POCs) for any OCONUS location where the contractor  
466 will be required to travel. The contractor shall coordinate to understand fully and to  
467 complete and submit necessary documents to the SOFA authority for each country where  
468 such support is to be scheduled. The contractor shall perform this task not later than 90  
469 calendar days prior to any scheduled travel.

470 **13. Government Furnished Property (GFP), Equipment, and Services**

471 The Requiring Activity Authority has assessed the need for Government Furnished  
472 Property, Equipment, and Services as described in the sub-sections below.

473 **13.1 Services**

474 In general, the Government will not provide Services unless specified in the task order.

475 **13.2 Facilities**

476 In general, the Government will not provide Facilities unless specified in the task order.

477 **13.3 Materials**

478 In general, the Government will not provide Materials unless specified in the task order.

479 **13.4 Equipment**

480 In general, the Government will not provide Equipment unless specified in the task order.

#### **13.4.1 Procurement Integrated Enterprise Environment (PIEE), GFP Module Application**

The contractor shall be responsible for obtaining and maintaining access, training, and successful operation of the PIEE/GFP Module application for the entirety of the task order PoP. The PIEE GFP Module application is located at the following website: <https://wawf.eb.mil/piee-landing/>. Access to PIEE/GFP Module application training materials and in-depth information applicable to the contractor's responsibilities regarding GFP can be found at the following website: <https://dodprocurementtoolbox.com>.

#### **Contracting Office Responsibilities:**

The Contracting Office shall ensure close coordination and validation of the GFP items with the COR and DHA Accountable Property Officer prior to uploading the GFP Attachment into the PIEE/GFP Module. At the time GFP is anticipated and identified, the Government will upload the GFP Attachment into the PIEE/GFP Module. It is the Contracting Office's responsibility to prepare, upload, and maintain the GFP Attachment in the PIEE/GFP Module in accordance with the GFP Attachment instructions provided at the DoD Procurement Toolbox. The Contracting Officer and COR shall manage and keep an inventory of any GFP associated with contract/task orders awarded through DHA, in accordance with applicable Federal Acquisition Regulation (FAR) Part 45, Revolutionary FAR Overhaul (RFO) Part 45, DoD FAR Supplement (DFARS) 245 with respective clauses, DHA Administrative Instruction (AI) 094 and PD 45-01 following the change in disposition of items listed on that PIEE/GFP Module Attachment.

The Contracting Office will also review, acknowledge, reject, and/or approve shipment orders provided by the contractor as appropriate. Functional roles can be determined within the Contracting Office and requested within the PIEE/GFP Module system.

#### **Contractor Responsibilities:**

A key contractor responsibility is to work with the Contracting Officer and COR to ensure the PIEE/GFP Module data, to include the PIEE/GFP Attachment, provides a timely, complete, and accurate accounting of the GFP applicable to the contract/task order. Contractors are required to report the receipt of any GFP shipped to them, regardless of whether it is listed on the GFP Attachment for their contract. Similarly, contractors are required to utilize the GFP Module application in conjunction with the shipment of GFP to the Government, or in reporting Property Loss of GFP issued (such as destruction or loss). Discrepancies or disputes regarding property shipped to or shipped from the contractor must be reported via the GFP Module application, with the Contracting Officer having authority over final designation of status.

## **14. Contractor Furnished Items and Services**

The contractor shall furnish all supplies, materials, equipment, facilities, and services required to perform work listed in Section 3, Desired Outcomes/Tasks/Objectives of this PWS as specified in the task order.

## **15. Manpower Reporting**

Contractors shall report “contractor manpower” (including subcontractor manpower) via the internet at [www.sam.gov](http://www.sam.gov). The contractor shall report annually by October 31, for services performed during the preceding Government fiscal year (October 1 – September 30), the amount invoiced for services, the number of hours of contract employees, and any relevant subcontract numbers and hours.

## **16. Data Rights**

In accordance with the DFARS clauses pertaining to data rights included in this contract (ref. DFARS RFO Class Deviation 2026-O0036 Part 227.4), the Government shall have unlimited rights to all data, documents, and materials produced or delivered in the performance of this contract. These deliverables include, but are not limited to, all analyses, evaluations, models, reports, documents, studies, computer programs, and services developed with Government funding.

All materials developed and delivered under this contract are the sole property of the Government. The contractor shall not use, sell, or otherwise distribute these materials for any purpose without the express written permission of the Contracting Officer. Government ownership includes the right to copyright, patent, register, and transfer these rights. This provision does not abrogate any other rights of the Government.

For any deliverables that contain or incorporate pre-existing materials not first produced under this contract, the contractor shall grant the Government a nonexclusive, worldwide, royalty-free, irrevocable license to use, reproduce, distribute, prepare derivative works, publicly perform, and publicly display such materials. The contractor warrants that it possesses all necessary intellectual property rights, permissions, and licenses to grant this to the Government.

The contractor shall provide prompt written notification to the Contracting Officer of any notice or claim of copyright or patent infringement received by the contractor with respect to any materials delivered or used in the performance of this contract.

## **17. Information Technology and Security**

Work under this contract may include classified work. Any additional security requirements will be specified under individual task orders.

Unless specified in the task order, the Automated Data Processing/Information Technology (ADP/IT) levels and position sensitivity designation for positions under this contract is **ADP/IT-II Level (Limited Privileged)**: Positions in which the contractor is responsible for the direction, planning, design, operation, or maintenance of a computer system, and whose work is technically reviewed at the IT-II Position level by a higher authority to ensure the integrity of the system. Personnel whose duties meet the criteria for an IT-II Position require a FAVORABLY ADJUDICATED TIER III (T3) Background Investigation for Suitability Determination. ADP/IT-II Level positions will not be granted eligibility for SECRET access.

## **17.1 Training**

Contractor employees performing cybersecurity/cyberspace functions shall comply with the following requirements:

- Training: All contractor and associated subcontractor employees working Cybersecurity Information Assurance (IA)/Cyberspace functions must comply with DoW training requirements in Department of Defense Directive (DoDD) 8140.01 and DoD Manual (DoDM) 8140.03. Contractors shall identify, document, track, and report qualifications of contractor support personnel who perform cyberspace roles.
- Certification: The contractor shall ensure that personnel accessing Information Systems (IS) have the proper and current IA certification to perform IA functions at task order award in accordance with the most current version of DoDM 8140.03, "Cyberspace Workforce Qualification and Management Program." The contractor shall meet the applicable IA certification requirements as outlined in DFARS 252.239-7001, including:
  - DoW-approved IA workforce certifications appropriate for each category and level as listed in the current version of DoDM 8140.03, "Cyberspace Workforce Qualification and Management Program."
  - Appropriate operating system and/or product certification for IA technical positions as required by the most current version of DoDM 8140.03, "Cyberspace Workforce Qualification and Management Program."

Upon request by the Government, the contractor shall provide documentation supporting the IA certification status of personnel performing IA functions.

Contractor personnel who do not have proper and current certifications shall be denied access to DoW IS for the purpose of performing IA functions.

## **17.2 Access to Defense Health Agency (DHA) IT**

All contractor employees that require access to DHA IT must comply with the requirements of DHA-Procedural Instruction 8140.01, Acceptable Use of DHA IT, to include those contract employees with privileged access.

**17.3 System Authorization Access Request (SAAR), Defense Department (DD)  
Form 2875**

The contractor shall submit the most current version of DD Form 2875, "System Authorization Access Request (SAAR), in accordance with the Contracting Officer guidance for all contractors that use the DoW Gateways to access Government IT systems and/or DoW applications. DD Form 2875 shall clearly specify the system and/or application name and justification for access to that system and/or application.

The contractor shall submit the completed DD Form 2875 to DHA IT Security for verification of Tier I or Tier II Designation. The DHA Personnel Security will verify that the contractor employee has completed the appropriate background investigation or a request for background investigation has been submitted to the Office of Personnel Management (OPM). Acknowledgement from OPM that the request for a background investigation has been received and that an investigation has been scheduled will be verified by the DHA Personnel Security prior to access being approved.

Upon approval, DHA will notify the user of the ID and password via secure/encrypted e-mail upon the establishment of a user account. User accounts will be established for individual use and may not be shared by multiple users or for system generated access to any DoW application. Misuse of user accounts by individuals or contractor entities will result in termination of system access for the individual user account.

The contractor shall conduct a monthly review of all contractor employees who have been granted access to DoW Information Systems/networks to verify that continued access is required.

The contractor shall provide the DHA Privacy and Civil Liberties Office (DPCLO) with a report of the findings of their review by the 10th day of each month following the review. Reports identifying changes to contractor employee access requirements shall include the name, DoW ID number from CAC, Company, IS/network for which access is no longer required and the date access will be terminated.

**17.4 Cybersecurity Requirements for Non-DoW IT or Covered Contractor  
Information Systems (IS)**

The contractor shall, at time of award, have implemented the security requirements prescribed in the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, "Protecting Controlled Unclassified Information in Nonfederal Information Systems and Organizations" (available via the internet at <http://dx.doi.org/10.6028/NIST.SP.800-171>), in accordance with DFARS clause 252.204-7012.

**NIST SP 800-171 DoD Assessment Methodology.**

The DFARS RFO clause 252.240-7997 introduces the “NIST SP 800-171 DoD Assessment Methodology” requirement. This requirement enables a strategic assessment of a contractor’s implementation of the NIST SP 800-171 requirements as required in DFARS clause 252.204-7012. The DoD Assessment Methodology requirement flows down to subcontractors. The contractor shall consider the recommendations for enhanced security requirements prescribed in the NIST SP 800-172, “Enhanced Security Requirements for Protecting Controlled Unclassified Information” (available via the internet at <https://doi.org/10.6028/NIST.SP.800-172>).

#### **Basic Assessment.**

The contractor shall perform a Basic Assessment, using the NIST SP 800-171 DoD Assessment Scoring Template, and provide the results for each covered contractor information system that is relevant to an offer, call, contract, task order, or delivery order.

The contractor shall ensure that applicable subcontractors also have their results of a current assessment posted in the designated government system prior to awarding a subcontract or other contractual instrument in accordance with DFARS clause 252.240-7997.

The contractor shall provide the Government with access to its facilities, systems, and personnel when necessary to conduct or renew a higher-level (i.e., Medium or High) assessment in accordance with DFARS clause 252.240-7997.

#### **Cybersecurity Maturity Model Certification.**

The contractor shall comply with DFARS RFO Class Deviation 240.371 Cybersecurity Maturity Model Certification. The CMMC (DFARS clause 252.204-7021) builds upon the NIST SP 800-171 DoD Assessment Methodology by adding a comprehensive and scalable certification element to verify the implementation of processes and practices associated with the achievement of a cybersecurity maturity level. The CMMC is designed to increase assurance to the DoW that federal contract information (FCI) and DoW CUI is protected at a level commensurate with the risk. The CMMC requirement flows down to subcontractors.

The contractor shall align with the most current CMMC program milestones and prepare to attain an accredited CMMC Third Party Assessment Organization (3PAO) at CMMC Level 2. Once CMMC 2.0 is fully implemented, DoW will only accept CMMC assessments provided by the Government or an authorized and accredited C3PAO or certified CMMC Assessor. In the final phases of the transition to CMMC 2.0 assessments will be retroactive, and contractors will need to demonstrate compliance. Additional information on CMMC is available at <https://dodcio.defense.gov/CMMC> and <https://www.cyberab.org/>.

The contractor shall submit requests to vary from NIST SP 800-171 in writing to the Contracting Officer or COR, for consideration by the DoW Chief Information Officer

(CIO). The contractor need not implement any security requirement adjudicated by an authorized representative of the DoW CIO to be non-applicable or to have an alternative, but equally effective, security measure that may be implemented in its place.

If the DoW CIO has previously adjudicated the contractor's requests indicating that a requirement is not applicable or that an alternative security measure is equally effective, a copy of that approval shall be provided to the Contracting Officer or COR when requesting its recognition under task orders issued under this contract.

#### **17.4.1 Cloud Computing**

If the contractor intends to use an external cloud service provider, on their behalf, to store, process, or transmit any DoW CUI in performance of task orders under this contract, the contractor shall require the cloud service provider meets security requirements equivalent to those established by the Government for the Federal Risk and Authorization Management Program (FedRAMP) Moderate baseline (<https://www.fedramp.gov/>) and that the cloud service provider complies with requirements outlined below for cyber incident reporting, malicious software, media preservation and protection, access to additional information and equipment necessary for forensic analysis, and cyber incident damage assessment.

If the information is DoW CUI-specific (e.g., PII/PHI), then the contractor shall ensure the external cloud service provider meets security requirements equivalent to FedRAMP High baseline.

#### **17.4.2 Cyber Incident Reporting Requirement**

When the contractor discovers a cyber incident that affects a covered contractor information system or the covered defense information residing therein, or that affects the contractor's ability to perform the requirements of any task orders under this contract that are designated as operationally-critical support and identified in the task order, the contractor shall:

- Conduct a review for evidence of compromise of covered defense information, including, but not limited to, identifying compromised computers, servers, specific data, and user accounts. This review shall also include analyzing covered contractor information system(s) that were part of the cyber incident, as well as other IS on the contractor's network(s), that may have been accessed as a result of the incident in order to identify compromised covered defense information, or that affect the contractor's ability to provide operationally critical support; and
- In accordance with DFARS clause 252.204-7012, rapidly report (within 72 hours) cyber incidents involving DoW CUI to DoD Cyber Crime Center (DC3) via <https://dibnet.dod.mil>. In the event of a cybersecurity incident involving a CUI-Specific breach (i.e., PII/PHI), the contractor, in addition to reporting to the DC3, shall follow the incident reporting guidance prescribed in the TRICARE

701 Operations Manual, Chapter 1, Section 5, “Compliance with Federal Statutes” at  
702 <https://manuals.health.mil/>.

703 The cyber incident report shall be treated as information created by or for DoW and shall  
704 include, at a minimum, the required elements as prescribed at the  
705 <https://dibnet.dod.mil/portal/intranet/>.

706 Medium Assurance Certificate Requirement: To report cyber incidents in accordance  
707 with this clause, the contractor or subcontractor shall have or acquire a DoW-approved  
708 medium assurance certificate to report cyber incidents. For information on obtaining a  
709 DoW-approved medium assurance certificate, see <https://public.cyber.mil/>.

#### 710 **17.4.3 Malicious Software**

711 When the contractor or subcontractors discover and isolate malicious software in  
712 connection with a reported cyber incident, submit the malicious software to DC3 in  
713 accordance with instructions provided by DC3 or the Contracting Officer. Do not send  
714 the malicious software to the Contracting Officer.

#### 715 **17.4.4 Media Preservation and Protection**

716 When a contractor discovers a cyber incident has occurred, the contractor shall preserve  
717 and protect images of all known affected IS and all relevant monitoring/packet capture  
718 data for at least 90 days from the submission of the cyber incident report to allow DoW to  
719 request the media or decline interest.

#### 720 **17.4.5 Access to Additional Information or Equipment Necessary for Forensic** 721 **Analysis**

722 Upon request by DoW, the contractor shall provide DoW with access to additional  
723 information or equipment that is necessary to conduct a forensic analysis.

#### 724 **17.4.6 Cyber Incident Damage Assessment Activities**

725 If DoW elects to conduct a damage assessment, the Contracting Officer will request that  
726 the contractor provide all the damage assessment information gathered in accordance  
727 with paragraph (e) of DFARS clause 252.204-7012.

#### 728 **17.4.7 Other IS Security Measures**

729 Apply other IS security measures when the contractor reasonably determines that IS  
730 security measures may be required to provide adequate security in a dynamic  
731 environment or to accommodate special circumstances (e.g., HIPAA) and any individual,  
732 isolated, or temporary deficiencies based on an assessed risk or vulnerability. These  
733 measures may be addressed in a system security plan.

734 **17.4.8 Maintenance of Government Data**

735 The contractor shall maintain within the United States (US) or US territories all  
736 Government data that is not physically located on DoW premises, unless the contractor  
737 receives written notification from the Contracting Officer to use another location, in  
738 accordance with DFARS RFO Class Deviation 2026-O0024 239.7602-2(a).

739 **17.4.9 Supply Chain Risk**

740 The contractor shall mitigate supply chain risk to the Government by complying with  
741 DFARS 252.239-7018 and only utilizing unified capability equipment identified on the  
742 Department of Defense Information Network (DoDIN) Unified Capabilities Approved  
743 Products List (<https://aplits.disa.mil/processAPList>), unless granted a waiver in  
744 accordance with DoDI 8100.04, DoD Unified Capabilities (UC).

745 **17.5 Risk Management Framework (RMF) for DoW IT**

746 The contractor shall comply with any implemented security controls for the product being  
747 deployed.

748 All IS, Platform Information Technology (PIT) and IT Services or Products under this  
749 requirement, that receive, transmit, store, or process nonpublic government data must be  
750 accredited in accordance with DoDI 8510.01, RMF for DoD Systems and comply with  
751 annual Federal Information Security Modernization Act (FISMA) security control testing.  
752 IS and PIT systems must be categorized in accordance with Committee on National  
753 Security Systems Instruction (CNSSI) 1253, implement a corresponding set of security  
754 controls from the NIST SP 800-53, and use assessment procedures from NIST SP 800-  
755 53A with additional DoW-specific assignment values, overlays, implementation  
756 guidance, and assessment procedures as required.

757 All systems and/or products subject to RMF must present evidence of authorization in the  
758 System Security Plan, Security Assessment Report, a Plan of Action and Milestones  
759 (POA&M) and authorization decision document or show that the system and/or product  
760 has a DoW RMF or equivalent DoW Component PIT system accreditation decision that  
761 is current within three (3) years within five (5) business days of Contracting Officer  
762 request. Evidence of FISMA compliance must be presented in the form of a POA&M.  
763 Systems and/or product(s) must have and maintain Authority to Operate (ATO) or ATO  
764 with Conditions (ATO-C) by task order award under this contract.

765 The contractor shall implement security controls in accordance with NIST  
766 implementation and validation requirements specified in the NIST SP 800-37 RMF and  
767 DoDI 8510.01, RMF.

768 The contractor shall configure the information system in accordance with Defense  
769 Information Agency (DISA) Security Requirements Guides (SRGs) and Security  
770 Technical Implementation Guides (STIGs).

771 The contractor shall ensure that the information system conforms to the requirements of  
772 DoDI 8551.01 “Ports, Protocols, and Services Management (PPSM)”.

773 The contractor shall ensure that the information system shall authenticate all entities as  
774 specified in DoDI 8520.03 “Identity Authentication for Information Systems” prior to  
775 granting access.

776 The contractor shall Public Key (PK) enable the information system, implementing  
777 digital signature and encryption requirements specified in DoDI 8520.02, “Public Key  
778 Infrastructure (PKI) and Public Key (PK) Enabling”.

779 The contractor will be responsible for compliance with the Joint Force Head Quarters –  
780 Department of Defense Information Network issuances and IA Vulnerability  
781 Management (IAVM) issuances by ensuring that the issuances are assessed, implemented  
782 and maintained throughout development and sustainment in accordance with specified  
783 timelines.

784 The contractor shall support reciprocity by providing all directed information in NIST  
785 security documents to the government.

786 The contractor shall implement system level protection and detection capabilities that are  
787 consistent with their contract for NIST Security requirements that meet DoW and DHA  
788 Cybersecurity Architectures.

789 The contractor shall comply with the most current version of DoDI 8500.01,  
790 “Cybersecurity”.

#### 791 **17.5.1 Cyber Incident Reporting Requirement**

792 The contractor shall comply with the incident management requirements of Chairman of  
793 the Joint Chiefs of Staff Manual (CJCSM) 6510.01B, “Cyber Incident Handling  
794 Program”.

#### 795 **Information Security Continuous Monitoring (ISCM)**

796 ISCM is defined as maintaining ongoing awareness of information security,  
797 vulnerabilities, and threats to support organizational risk management decisions. ISCM  
798 is a critical part of the risk management process to ensure that IS and PIT operations  
799 remain within an acceptable level of risk despite any changes that occur. The contractor  
800 shall maintain ongoing monitoring, analysis and incident response procedures for all  
801 Acquisition Requirements Roadmap Tool (ARRT) and PIT systems under this  
802 requirement in accordance with NIST SP 800-137.

## 18. Definitions

- Category D: Information Technology (IT) and Telecommunications Services (called D-services)
- Category R: Support (Professional/Administrative/Management) Services (called R-services)
- Contracting Officer: A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings.
- Contracting Officer's Representative (COR): An individual, including a contracting officer's technical representative (COTR), designated and authorized in writing by the Contracting Officer to perform specific technical or administrative functions. This individual does NOT have authority to change the terms and conditions of this agreement or any resulting task order.
- Nonpersonal services contract: A contract under which the personnel rendering the services are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees.
- Quality Assurance Surveillance Plan (QASP): An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance. The Government may either prepare the QASP or require the offerors to submit a proposed quality assurance surveillance plan for the Government's consideration in development of the Government's plan.
- Fixed Facility: This encompasses the permanent, brick-and-mortar military treatment facilities (MTFs). It includes inpatient hospitals, medical centers, ambulatory care clinics, and dental clinics.
- Operational Medicine: This refers to deployed and tactical environments. This includes theater hospitals, hospital ships, forward resuscitative sites, and submarines.
- Role 1: Unit-level medical care or self-aid, buddy aid, combat lifesaver, and/or medic care. Role 1 Care enables medics to electronically document care at the Point of Injury (POI) and during transport, also known as En-Route Care (ERC). Includes disease non-battlefield injury (DNBI) and Damage Control Resuscitation (DCR). Role 1 places major emphasis on the patient returning to duty or stabilizing individual enough to evacuate to the next appropriate role of care.
- Role 2: Forward Resuscitative Care - provides advanced trauma and emergency management, including continuation of care, but a greater capability to resuscitate patients. Role 2 is not designed for long-term patient holding. This includes continued DNBI and DCR, and Damage Control Surgery (DCS).
- Role 3: Theater Hospitalization provides essential care and health service support capabilities with goal to either return patient to duty or stabilize to evacuate to care outside theater. This includes emergency and specialty surgery, intensive care, medical specialty care, resuscitation, post-operative treatment, other ancillary services, and any necessary care for patients who cannot be transported.
- Role 4: Definitive Care – the highest level of care, usually located outside theater in MTFs or VA hospitals.

- Low-to-no-touch: This refers to an approach that minimizes direct human interaction and relies heavily on automated, self-service methods and pre-built content.
- Middle (Mid) office: A non-revenue generating part of a technology company that provides enabling services to the Front-Office in charge of mission outcomes. Tasked with general project management and information technology activities (excluding development of revenue-generating or mission-oriented software) that are directly utilized by the Front Office.
- Front Office: The mission-outcome generating teams (revenue-generating teams in a technology company) that interact directly with the customer/user base. Performs any business and technology activities necessary to achieve revenue generation or mission success. Utilizes enabling services from the Middle Office and is supported by administrative functions in the Back Office.
- Back Office: A non-revenue generating part of a technology company that provides enabling services to the Front-Office in charge of mission outcomes. Tasked with administrative, clerical, and financial management activities that support the compliance and operational posture of the business.
- Prime Mission Product Support: Includes, but is not limited to, provisioning of off-the-shelf or developmental software or hardware, or support services resulting in any direct financial interest in the development, delivery, implementation, sustainment, or support for a component of, integrated product, system, or system of systems utilized by clinical, business, or management end users in a healthcare or operational medicine environment by one of PEO DHMS' partner organizations, including but not limited to the DoW, the VA, or the Department of Homeland Security. This includes programs and systems of record that are referred to by DoW policy as "major systems" or "Defense Business Systems".

## 19. Acronyms

| Acronym | Meaning                                                        |
|---------|----------------------------------------------------------------|
| AIS     | Automated Information System                                   |
| APL     | Approved Products List APL                                     |
| AQL     | Acceptable Quality Level                                       |
| ARRT    | Acquisition Requirements Roadmap Tool                          |
| ATO     | Authority to Operate                                           |
| B2B     | Business-2-Business                                            |
| CAC     | Common Access Card                                             |
| CAP     | Cloud Access Point                                             |
| CCEVS   | Common Criteria Cybersecurity Evaluation and Validation Scheme |

|             |                                                          |
|-------------|----------------------------------------------------------|
| CDI         | Covered Defense Information                              |
| CE          | Computer Environment                                     |
| CDRL        | Contract Data Requirement List                           |
| CIO         | Chief Information Officer                                |
| CJCSM       | Chairman of the Joint Chiefs of Staff Manual             |
| CMMC        | Cybersecurity Maturity Model Certification               |
| CMR         | Contractor Manpower Reporting                            |
| CNSSI       | Committee on National Security Systems Instruction       |
| CONUS       | Continental United States (excludes Alaska and Hawaii)   |
| COR         | Contracting Officer Representative                       |
| COTR        | Contracting Officer's Technical Representative           |
| CSP         | Cost, Schedule, Performance Report                       |
| CSSP        | Cyber Security Service Provider                          |
| CWBS        | Contractor Work Breakdown Structure                      |
| CUI         | Controlled Unclassified Information                      |
| DAD-A       | Deputy Assistant Director for Acquisition                |
| DC3         | DoD Cyber Crime Center                                   |
| DD Form 254 | Department of Defense Contract Security Requirement List |
| DB          | Design-Build                                             |
| DBB         | Design-Bid-Build                                         |
| DFARS       | Defense Federal Acquisition Regulation Supplement        |
| DHA         | Defense Health Agency                                    |
| DISA        | Defense Information System Agency                        |
| DoD         | Department of Defense                                    |
| DoDD        | Department of Defense Directive                          |
| DoDI        | Department of Defense Instruction                        |
| DoDIN       | Department of Defense Information Network                |
| DSAs        | Data Sharing Agreements                                  |

|         |                                                     |
|---------|-----------------------------------------------------|
| DSAA    | Data Sharing Agreement Application                  |
| DMZ     | Demilitarized Zone                                  |
| DoDM    | Department of Defense Manual                        |
| DoW     | Department of War                                   |
| DPCLO   | DHA Privacy and Civil Liberties Office              |
| DUA     | Data Use Agreement                                  |
| eMSM    | Enhanced Multi-Service Markets                      |
| EULA    | End User License Agreement                          |
| FAR     | Federal Acquisition Regulation                      |
| FCI     | Federal Contract Information                        |
| FE      | Facilities Enterprise                               |
| FedRAMP | Federal Risk Authorization and Management Program   |
| FISMA   | Federal Information Security Modernization Act      |
| FRCS    | Facility Related Control Systems                    |
| FSO     | Facilities Security Officer                         |
| HA      | Health Affairs                                      |
| HIPAA   | Health Insurance Portability and Accountability Act |
| HCA     | Head of the Contracting Activity                    |
| HIT     | Health Information Technology                       |
| IGCE    | Independent Government Cost Estimate                |
| IA      | Information Assurance                               |
| ICD     | Interface Control Document                          |
| IO      | Initial Outfitting                                  |
| I/O     | In/Out Processing Portal                            |
| IPv     | Internet Protocol Version                           |
| IS      | Information System                                  |
| ISP     | Internet Service Provider                           |
| IT      | Information Technology                              |

|         |                                                                |
|---------|----------------------------------------------------------------|
| ISCM    | Information Security Continuous Monitoring                     |
| IV&V    | Independent Verification & Validation                          |
| MedCOI  | Medical Community of Interest                                  |
| MHS     | Military Health System                                         |
| MIL-STD | Military Standard                                              |
| MTFs    | Military Treatment Facilities                                  |
| NCR     | National Capital Region                                        |
| NDA     | Non-Disclosure Agreement                                       |
| NIAP    | National Information Assurance Partnership                     |
| NIST    | National Institute of Standards and Technology                 |
| OCONUS  | Outside Continental United States (includes Alaska and Hawaii) |
| ODC     | Other Direct Costs                                             |
| OPM     | Office of Personal Management                                  |
| OSD     | Office of the Secretary of Defense                             |
| P-ATO   | Personal Authorization to Operate                              |
| P&R     | Personnel and Readiness                                        |
| PGI     | Procedures, Guidance and Information                           |
| PDT     | Project Delivery Team                                          |
| PHI     | Protected Health Information                                   |
| PII     | Personally Identifiable Information                            |
| PIT     | Platform Information Technology                                |
| PK      | Public Key                                                     |
| PKI     | Public Key Infrastructure                                      |
| POA&M   | Plan of Action and Milestones                                  |
| POC     | Point of Contact                                               |
| PMO     | Program Management Office                                      |
| PoP     | Period of Performance                                          |
| PP      | Personal Property                                              |

|      |                                            |
|------|--------------------------------------------|
| PPSM | Ports, Protocols, and Services Management  |
| PRS  | Performance Requirements Summary           |
| PSP  | Personnel Security Program                 |
| PWS  | Performance Work Statement                 |
| QA   | Quality Assurance                          |
| QAP  | Quality Assurance Program                  |
| QASP | Quality Assurance Surveillance Plan        |
| QC   | Quality Control                            |
| QCP  | Quality Control Plan                       |
| RFP  | Request for Proposal                       |
| RFQ  | Request for Quotation                      |
| RMF  | Risk Management Framework                  |
| SP   | Special Publication                        |
| SRM  | Sustainment, Restoration and Modernization |
| SRG  | Security Requirements Guides               |
| STIG | Security Technical Implementation Guides   |
| TOS  | Terms of Service                           |
| US   | United States                              |
| UFC  | Unified Facilities Criteria                |
| VPN  | Virtual Private Network                    |
| XML  | Extensible Markup Language                 |

874 **20. Personal Conduct**

875 Contractors shall adhere to the same or better standards of conduct required of  
876 government employees per direction of the DHA Commander.

877 **21. Physical Security**

878 Contractors shall safeguard all Government equipment, information, and property  
879 provided by the Government for their use. As appropriate, at the close of each work  
880 period, Government facilities, equipment, and materials shall be secured.

## **22. Security Management**

The contractor shall designate a Security POC to support the onboarding of contractor personnel for each resulting task order under this contract. This Security Officer will be responsible for coordinating with the COR to complete the required personnel security clearances and onboarding, training, and CAC requirements. The Security POC shall be responsible for tracking the security requirements for all personnel (subcontractors included) utilized on each resulting task order under this contract.

## **23. Personnel Security Requirements**

This clause establishes requirements and processes for the Personnel Security Screenings for DHA contractor personnel and any subcontractors in performance of this contract, in accordance with DoW and federal regulations.

### **23.1 General Requirements**

The contractor shall ensure that all personnel performing work under this contract comply with the applicable DoW personnel security requirements as outlined in DoDM 5200.02, DoDI 5200.46, DoDI 1402.05, and all other relevant regulations. As specified in the task order, if the work is classified, the contractor shall ensure that all personnel performing work also comply with the applicable DoW personnel security requirements outlined in DoDM 5200.01 V1-3, DoDM 5105.21 V1-3, and all other relevant regulations. The contractor shall verify that all personnel performing duties under this contract are suitable for access to Controlled Unclassified Information (CUI) and/or secure facilities, as determined by the appropriate security clearance level and background checks.

### **23.2 Background Investigations**

Prior to starting work, all contractor personnel shall complete the required security background investigation to obtain the minimum required clearance for task orders issued under this contract.

All personnel performing duties on this contract must have their security clearance status verified by the DHA Administration Security Division (ASD). Procedures and requirements can be found in DHA Administrative Instruction 5200.04, 5200.05, and DHA Internal Policy Memorandums. Vetting packages must be submitted for processing by the assigned Contracting Officers Representative (COR) or Facility Security Officer (FSO) depending on Personnel Security office of primary responsibility.

#### **23.2.1 Minimum Background Investigation**

Unless otherwise specified, all personnel performing duties on this contract must undergo and maintain a favorably adjudicated Tier 1 or Tier 3 background investigation, or an equivalent or higher-level investigation that meets the requirements of the position or role

916 on task orders under this contract. Investigations must be conducted in accordance with  
917 the Office of Personnel Management (OPM) Federal Investigation Standards.

918 The contractor is responsible for ensuring all personnel meet this requirement before  
919 commencing work. The contractor shall submit all required background investigation  
920 packages by following the procedures established by the Defense Health Agency (DHA)  
921 Personnel Security Office. For questions regarding the submission process, contact the  
922 DHA Personnel Security Office at (703) 275-6038.

#### 923 **23.2.2 Access to Sensitive Information and Moderate Risk Information Systems**

924 Personnel assigned to task orders under this contract who require access to specific  
925 categories of sensitive/controlled unclassified information and access to Unclassified  
926 Moderate Risk Information Systems may be subject to a higher Tier background  
927 investigation with a favorable final determination. Personnel falling into this category  
928 must have a valid need-to-know, determined by the Contracting Officer or COR. In  
929 situations where this paragraph applies, a justification memorandum must be submitted  
930 with the security package. At a minimum, this memorandum should clearly identify the  
931 contract employee; Names, access requirements, and permission levels of the information  
932 system(s) required to perform duties on the task order; shall be endorsed by the  
933 applicable Information Systems Security Officer (ISSM), confirming the system  
934 requirements; signed by the government official validating the contract employee's need-  
935 to know.

#### 936 **23.2.3 Background Investigation (Secret)**

937 As specified in the task order, if the work is classified, some personnel performing duties  
938 on this contract must have been subject to, at a minimum, a Tier 3, or equivalent  
939 background investigation as required by the Office of Personnel Management Federal  
940 Investigation Standards. The contractor is responsible for ensuring security clearance  
941 eligibility at the secret level is granted by Defense Counterintelligence and Security  
942 Agency (DCSA) or cognizant security authority, and their personnel are enrolled into  
943 continuous evaluation (CE) within the last five years. The contractor is responsible for  
944 all required background investigations and clearance maintenance. Any personnel who  
945 are unable to maintain the requisite level of eligibility or found to be unsuitable for  
946 employment on this contract shall be removed from the project at the direction of the  
947 Contracting Officer or ASD Personnel.

#### 948 **23.2.4 Background Checks Supporting Local Anti-Terrorism/Force Protection** 949 **Requirements**

950 Screenings conducted by ASD will be limited to those required to perform duties as  
951 described in this statement of work and the task order. The Defense Health Agency does  
952 not control Military Installation Physical Security requirements; supplemental  
953 background checks may be required for entry. Additional costs associated with  
954 processing supplemental background checks are not covered within this contract.

## 955    **23.3    Controlled Unclassified Information**

956    Controlled Unclassified Information under this contract shall be safeguarded as specified  
957    in DoDI 5200.48 Controlled Unclassified Information (CUI).

### 958    **23.3.1        Access to CUI**

959    Prior to accessing CUI, all personnel must have completed a Personnel Security  
960    screening as described in paragraph 22.2 Background Investigations and received, at a  
961    minimum, a favorable HSPD-12 interim determination.

962    CUI requires safeguarding measures identified by the CUI EA in Part 2002.14 of Title  
963    32, CFR and, as necessary, in the law, regulation, or government-wide policy with which  
964    it is associated. DoW CUI may be disseminated to DoW personnel to conduct official  
965    DoW and U.S. Government business in accordance with a law, regulation, or  
966    government-wide policy.

- 967        1) No individual may have access to CUI information unless it is determined he  
968        or she has an authorized, lawful government purpose.
- 969        2) The person with authorized possession, knowledge, or control of CUI will  
970        determine whether an individual has an authorized, lawful government  
971        purpose to access designated CUI.
- 972        3) CUI information may be disseminated within the DoW Components and  
973        between DoW Component officials and DoW contractors, consultants, and  
974        grantees to conduct official business for the DoW, provided dissemination is  
975        consistent with controls imposed by a distribution statement or limited  
976        dissemination controls (LDC).
- 977        4) CUI designated information may be disseminated to a foreign recipient in  
978        order to conduct official business for the DoW, provided the dissemination  
979        has been approved by a disclosure authority in accordance with Paragraph  
980        3.4.c. and the CUI is appropriately marked as releasable to the intended  
981        foreign recipient.

982    Contractors shall ensure all employees and subcontractors granted access to CUI are  
983    informed of their responsibilities under this clause and applicable laws and policies.

### 984    **23.3.2        CUI Protection, Handling, and Marking Requirements**

985    **Handling:** Access to CUI material shall be limited to those employees needing the  
986    material to perform their duties. The CUI marking is assigned to documents and material  
987    created by a DoW User Agency. CUI is not a classification but requires extra precautions  
988    to ensure its properly safeguarded and disseminated and is not released to the public  
989    without government authorization.

990    **Marking:** All CUI shall be marked in accordance with DoDI 5200.48 and 32 CFR Part  
991    2002. The minimum marking shall include:

- 992 • The "CUI" designation at the header and footer of each page, presentation,  
993 spreadsheet, e-mail, etc.
- 994 • Category markings (if applicable) and dissemination controls.
- 995 • The first page or cover of any document or material containing CUI, including a  
996 document with commingled classified information, will include a CUI designation  
997 indicator.
- 998 • Portion markings are encouraged but not required unless specified.

999 Emails containing CUI must include the acronym "CUI" in the subject line, attachments  
1000 containing CUI and appropriate CUI markings in the header and footer. E-mails  
1001 containing CUI should be encrypted.

1002 CUI material released to a contractor by a DoW user agency must have the following  
1003 statement on the front page or cover:

1004 THIS DOCUMENT CONTAINS CUI MATERIAL AND MUST BE REVIEWED BY A  
1005 GOVERNMENT REPRESENTATIVE UNDER THE REQUIREMENTS OF DODI  
1006 5200.48, DODI 5230.09, and DODI 5230.29.

1007 **Storage:** During normal duty hours, steps will be taken to minimize the risk of access by  
1008 unauthorized personnel, such as not reading, discussing, or leaving CUI information  
1009 unattended where unauthorized personnel are present. Use a CUI cover sheet for single  
1010 layer protection. After normal duty hours, CUI information will be stored in unlocked  
1011 containers, desks, or cabinets if the government or government-contract building provides  
1012 security for continuous monitoring of access. If building security is not provided, the  
1013 information will be stored in locked desks, file cabinets, bookcases, locked rooms, or  
1014 similarly secured areas. The concept of a controlled environment means there is  
1015 sufficient internal security measures in place to prevent or detect unauthorized access to  
1016 CUI. Expenditure of funds for security containers or closed areas solely for the  
1017 protection of CUI material is prohibited.

1018 **Transmission:** CUI information and material may be transmitted via first class mail,  
1019 parcel post, or bulk shipments. When practical, CUI information may be transmitted  
1020 electronically (e.g., data, website, or e-mail), via approved secure communications  
1021 systems or systems utilizing other protective measures such as Public Key Infrastructure  
1022 or transport layer security (e.g., https). Avoid wireless telephone transmission of CUI  
1023 when other options are available. CUI transmission via facsimile machine is permitted;  
1024 however, the sender is responsible for determining whether appropriate protection will be  
1025 available at the receiving location before transmission (e.g., facsimile machine attended  
1026 by a person authorized to receive CUI; facsimile machine located in a controlled  
1027 government environment).

1028 **Unauthorized Disclosure:** Report misuse, mishandling, or Unauthorized Disclosure of  
1029 CUI to the Unauthorized Disclosure Program Management Office, the Controlling  
1030 Agency and the appropriate Military Department Counterintelligence Organization.  
1031 While Unauthorized Disclosure of CUI does not constitute a security violation, a formal

security inquiry/investigation is required if administrative action will be taken against the individual(s) responsible. Unauthorized Disclosure of certain CUI, such as export controlled-technical data, may also result in civil and criminal sanctions against responsible persons based on procedures codified in relevant law, regulation, or government-wide policy.

**Processing:** Unclassified Automated Information Systems (AIS) used to process CUI under this contract must meet the basic security requirements listed in the NIST SP 800-171 REV 2, "Protecting Controlled Unclassified Information in Non-Federal Systems and Organizations", 21 February 2020. AIS accredited and approved for processing classified information under this contract are also approved to process DoW CUI.

**Dissemination:** CUI may be disseminated between officials of DoW Agencies, DoW contractors, consultants and grantees to conduct official business for the DoW provided the dissemination is consistent with controls imposed by a Distribution Statement or Limited Dissemination Controls (LDC). Guidance on Distribution Statements and LDCs will be provided separately by the government for any prescribed CUI Specified information. For classified contracts, this information will be contained in the program SCG. CUI always requires Foreign Disclosure Decision before release outside of DoW Agencies, DoW contractors, consultants and grantees.

**Destruction:** When the CUI material no longer meets the threshold for safeguarding and dissemination, it shall be immediately decontrolled, be processed through the records management process, and destroyed by the approved methods identified in DoDI 5200.48 precluding its disclosure to unauthorized individuals by rendering it unreadable, indecipherable, and irrecoverable.

#### **23.4 Common Access Card (CAC) Issuance**

All contractors working onsite in Government facilities are required to have a CAC. The CAC is the standard identification for eligible DoW industry partners. It is the principal card used to enable physical access to buildings and controlled spaces and provides access to DoW computer networks and systems. As required, each contractor employee shall provide the Government all information required by the DHA CAC request process. For more information contact the DHA Personnel Security Office can be reached at (703) 275-6038. Please note that a CAC cannot be obtained until the required personnel security clearance has been submitted and the investigation is scheduled. The DHA Personnel Security Office will notify the designated Security POC when it is appropriate to submit for a CAC.

CAC issuance requires, at a minimum, a favorably adjudicated Tier 1 (T1) or higher investigation in accordance with DODI 5200.46. The contractor employee will be issued a CAC only if duties involve one of following:

- 1) Both physical access to a DoW facility and access, via logon, to DoW networks on-site or remotely; or

- 1071 2) Remote access, via logon, to a DoW network using DoW-approved remote access  
1072 procedures; or  
1073 3) Physical access to multiple DoW facilities or multiple non-DoW federally  
1074 controlled facilities on behalf of the DoW on a recurring basis for a period of six  
1075 months or more.

1076 A CAC may be issued on an interim basis once a Tier 1 has been successfully scheduled  
1077 with the DCSA and a favorable Federal Bureau of Investigation (FBI) fingerprint results.

1078 The contractor shall return all CACs to the COR upon the departure of the contractor(s).

### 1079 **23.5 Mission Partner Identity, Credential and Access Management Process**

1080 Mission Partner Identity, Credential and Access Management (MP ICAM) (formerly  
1081 known as Trusted Associate Sponsorship System (TASS)): The contractor shall process  
1082 CAC applications through the MP ICAM, the procedures for which are described below.  
1083 Although there is no requirement for the contractor to designate a Corporate FSO to serve  
1084 as its single point of contact for the background investigation, the MP ICAM application  
1085 process and other CAC and security-related matters, such designation facilitates these  
1086 processes. If a Corporate FSO is not established, all contractor employees requiring a  
1087 CAC will be required to process their own applications. The submission process for  
1088 CAC applications is as follows:

- 1089 1. The contractor's FSO or COR shall submit requests for a CAC via email to the  
1090 designated Mission Partner Affiliation Sponsor (MPAS) (formerly known as the  
1091 Trusted Agent (TA)).
- 1092 2. The Government will establish an MP ICAM application account for each CAC  
1093 Request and each contractor employee will receive two (2) automated emails  
1094 from MP ICAM; a user ID and password. The contractor employee or designated  
1095 proxy shall access the MP ICAM account and complete the CAC application.  
1096 Once completed, the contractor employee will submit the completed application  
1097 to the MPAS for next steps.
- 1098 3. An automated email triggered by the MPAS will inform the contractor applicant  
1099 one of the following:
- 1100 a. Approval \* Upon approval, the information is transferred to the Defense  
1101 Enrollment Eligibility Reporting System (DEERS) database and an email  
1102 notification is sent to the contractor with instructions on obtaining their  
1103 CAC. The contractor proceeds to a RAPIDS station (RAPIDS Site  
1104 Locator: <https://idco.dmdc.osd.mil/idco/>).
  - 1105 b. Rejection \* The Government sponsor, in separate correspondence, will  
1106 provide reason(s) for rejection.
  - 1107 c. Return \* Additional information or correction to the application required  
1108 by the contractor employee.
  - 1109 d. Transfer \* Upon transfer, the contractor's MP ICAM profile is now  
1110 assigned to a different contract and/or MPAS for further management.

1111     **23.6   Foreign Nationals**

1112     The contractor shall immediately notify the Contracting Officer of any foreign national  
1113     personnel assigned to work on this contract. The Contracting Officer, in consultation  
1114     with the Security Office and Foreign Disclosure Officer, will determine the eligibility of  
1115     foreign national personnel for access to sensitive information and ensure compliance with  
1116     applicable security protocols.

1117     **23.7   Security Training**

1118     The contractor shall provide personnel security training to all employees working under  
1119     this contract. Such training shall cover all applicable security requirements, including  
1120     handling of classified material, protection of sensitive information, and security breach  
1121     reporting procedures.

1122     **23.8   Reporting Security Violations**

1123     The contractor shall immediately report any security violations or potential security risks,  
1124     including unauthorized access, mishandling of protected information, or any personnel  
1125     security issues, to ASD through the COR.

1126     The contractor shall cooperate fully with any security investigations and take any  
1127     prescribed corrective action as required by the Contracting Officer. Any suspected or  
1128     actual security violations involving NSI shall be immediately reported to the Government  
1129     Contracting Activity Security Officer (GCASO) and the contractor's FSO.

1130     This section is subject to change based on evolving security requirements and applicable  
1131     government regulations. The contractor is responsible for maintaining current knowledge  
1132     of and compliance with all relevant security regulations.

1133     **23.9   Termination of Personnel**

1134     The contractor must immediately notify the Contracting Officer and ASD if the  
1135     employment of any personnel performing duties on this contract is terminated. If  
1136     applicable, all visit authorizations should be canceled as soon as reasonably practicable.

1137     **23.10 Documentation and Records**

1138     The contractor shall maintain records of all personnel security clearances, background  
1139     investigations, and security training for the duration of the contract. These records shall  
1140     be made available to the Contracting Officer or authorized ASD representatives upon  
1141     request.

1142     **24.   Contractor Personnel**

1143

## **24.1 Onboarding & Training**

The contractor shall ensure that all staff assigned to, including all subcontractors, consultants, or other personnel performing on the contract/task order complete all required training and provide Staff Training Certificates (D004) of completion to the COR. Onboarding and training questions should be directed to the assigned COR or [dha.ncr.peo-ipo.mbx.peo-dhms-in-out-processing@health.mil](mailto:dha.ncr.peo-ipo.mbx.peo-dhms-in-out-processing@health.mil).

The contractor shall comply with all training requirements of the DHA for contractors requiring CAC identification, including DoW and DHA-directed training and forms submission, prior to network access (see Attachment - DHA\_FY25\_Common\_Federal\_Training\_List).

## **24.2 Contractor Identification**

All contractor employees are required to identify themselves as contractor personnel by introducing themselves or being introduced as contractor personnel and displaying distinguishing badges or other visible identification for meetings with Government personnel. Additionally, all contractor personnel are required to appropriately identify themselves as contractor employees in telephone conversations and in formal and informal written correspondence.

## **24.3 Non-Disclosure Agreement (NDA)**

All contractor personnel who will obtain access to proprietary, classified, or confidential information or any information release of which is protected or governed by law or regulation associated with DHA acquisitions shall be required to complete and sign a DHA contractor NDA, DHA Form 49 (D005) prior to beginning work on the subject task order. The contractor shall execute an NDA on behalf of the company and shall ensure that all staff assigned to, including all subcontractors and consultants, or other personnel performing on task orders execute an NDA protecting the procurement sensitive information of the Government and the proprietary information of other contractors. The NDA shall be executed not later than first day of employment and to be renewed upon exercising a contract option period of the task order. Assignment of staff who has not executed this statement or failure to adhere to this statement shall constitute default on the part of the contractor. The contractor shall maintain originally signed NDAs of individual employees and provide copy to the COR.

## **24.4 Organizational Conflict of Interest (OCI)**

Contractor and subcontractor personnel performing work on task orders under this contract may receive, have access to or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.) or perform evaluation services which may create a current or subsequent Organizational Conflict of Interest (OCI) as defined in RFO Subpart 9.5. The contractor shall notify the Contracting Officer immediately

whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the Contracting Officer to avoid or mitigate any such OCI. The contractor's OCI Mitigation Plan will be determined to be acceptable solely at the discretion of the Contracting Officer and in the event the Contracting Officer unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the Contracting Officer may effect other remedies as he or she deems necessary, including prohibiting the contractor from participation in subsequent contracted requirements which may be affected by the OCI.

## **25. Personally Identifiable Information (PII)/Protected Health Information (PHI), Procurement, and Federal Information Laws**

This Section addresses the contractor's requirements under The Privacy Act of 1974 (Privacy Act), The Freedom of Information Act (FOIA), and The Health Insurance Portability and Accountability Act (HIPAA) as set forth in applicable statutes, implementing regulations and DoW issuances. In general, the contractor shall comply with the specific requirements set forth in this Section and elsewhere in this contract. The contractor shall also comply with requirements relating to records management as described herein.

This contract incorporates by reference the federal regulations and DoW issuances referred to in this Section. If any authority is amended or replaced, the changed requirement is effective when it is incorporated under contract change procedures. Where a federal regulation and any DoW issuance govern the same subject matter, the contractor shall first follow the more specific DoW implementation unless the DoW issuance does not address or is unclear on that matter. DoW issuances are available at <http://www.dtic.mil/whs/directives>.

For purposes of this Section, the following definitions apply:

- DoD Privacy Act Issuances means the DoW issuances implementing the Privacy Act, which are DoDI 5400.11, DoD Privacy and Civil Liberties Programs, January 29, 2019 and DoDI 5400.11-R, Department of Defense Privacy Program, May 14, 2007.
- HIPAA Rules means, collectively, the HIPAA Privacy, Security, Breach and Enforcement Rules, issued by the U.S. Department of Health and Human Services (HHS) and codified at 45 Code of Federal Regulations (CFR) Part 160 and Part 164, Subpart C (Security), Subpart D (Breach) and Part 160, Subparts C-E (Enforcement), as amended. Additional HIPAA rules regarding electronic transactions and code sets (45 CFR Part 162) are not addressed in this Section and are not included in the term HIPAA Rules.
- DoD HIPAA Issuances means the DoW issuances implementing the HIPAA Rules in the DoW Military Health System (MHS). These issuances are DoDM 6025.18, "Implementation of the Health Insurance Portability and Accountability Act (HIPAA) Privacy Rule in DoD Health Care Programs," March 13, 2019, DoDI 6025.18, Health Insurance Portability and Accountability Act (HIPAA)

1223 Privacy Rule Compliance in DoD Health Care Programs, March 13, 2019, and  
1224 DoDI 8580.02, Security of Individually Identifiable Health Information in DoD  
1225 Health Care Programs, August. 12, 2015.  
1226 • Defense Health Agency (DHA) Privacy Office is the DHA Privacy and Civil  
1227 Liberties Office. The DHA Privacy Office Chief is the HIPAA Privacy and  
1228 Security Officer for DHA.

## 1229 **26. Records Management**

1230 When creating and maintaining official government records, the contractor shall comply  
1231 with all federal requirements established by 44 United States Code (U.S.C.) Chapters 21,  
1232 29, 31, 33 and 35, and by 36 CFR, Chapter XII, Subchapter B – Records Management.  
1233 The contractor shall also comply with DoD Administrative Instruction No. 15 (DoD AI-  
1234 15), “OSD Records and Information Management Program” (May 3, 2013) and Records  
1235 Management requirements outlined in the current TRICARE Operations Manual (TOM).

## 1236 **27. Freedom of Information Act (FOIA)**

1237 The contractor shall comply with the following procedures if it receives a FOIA request  
1238 and immediately contact the DHA FOIA Officer for evaluation/action.

1239 The contractor shall inform beneficiaries that DHA FOIA procedures require a written  
1240 request preferably sent via the National FOIA Portal at: [www.FOIA.gov](http://www.FOIA.gov). However,  
1241 requesters may also submit requests via email at [DHA.FOIA@mail.mil](mailto:DHA.FOIA@mail.mil); or via postal  
1242 delivery addressed to the DHA Freedom of Information Service Center, 7700 Arlington  
1243 Boulevard, Suite 5101, Falls Church, Virginia 22042-5101. All FOIA requests shall  
1244 describe the desired record as completely as possible to facilitate its retrieval from files  
1245 and to reduce search fees which may be borne by the requestor. Contract and/or  
1246 Modification numbers must be included in all FOIA requests seeking DHA procurement  
1247 records. Although the administrative time limit to grant or deny a request (ten working  
1248 days after receipt) does not begin until the request is received by DHA, the Contractor  
1249 shall act as quickly as possible and respond to DHA within ten working days.

1250 In response to requests received by the contractor for the release of information,  
1251 unclassified information, documents, and forms which were previously provided to the  
1252 public as part of routine services shall continue to be made available in accordance with  
1253 previously established criteria. All other requests from the public for release of DHA  
1254 records and, specifically, all requests that reference FOIA shall be immediately  
1255 forwarded to DHA, ATTENTION: Freedom of Information Officer, for appropriate  
1256 action. Direct contact, including interim replies, between TRICARE contractors and such  
1257 requestors is not authorized. The contractor shall process requests by individuals for  
1258 access to records about themselves in accordance with directions from the DHA Freedom  
1259 of Information Service Center. If such a requestor specifically makes the request under  
1260 the Privacy Act or does not make clear whether the request is made under FOIA or the  
1261 Privacy Act, the contractor shall process the request in accordance with directions from  
1262 the DHA Privacy Office. If requestor specifically seeks PHI under HIPAA, the

1263 Contractor shall follow applicable laws and regulations, relating to individual rights of  
1264 access to PHI.

## 1265 **28. Systems of Record**

1266 To meet the requirements of the Privacy Act and the DoD Privacy Act Issuances, the  
1267 contractor shall identify to the DHA Contracting Officer systems of records that are or  
1268 will be maintained or operated for DHA where records of PII collected from individuals  
1269 are maintained and specifically retrieved using a personal identifier. Upon identification  
1270 of such systems and/product(s) to the Contracting Officer, and prior to the lawful  
1271 operation of such systems and/or product(s), the contractor shall coordinate with the  
1272 DHA Privacy Office to complete systems of records notices (SORNs) for submission and  
1273 publication in the Federal Register as coordinated by the Defense Privacy, Civil Liberties,  
1274 and Transparency Division, and as required by the DoD Privacy Act Issuances.  
1275 Following proper SORN publication and Government confirmation of contractor  
1276 authority to operate the applicable system(s), the contractor shall also comply with the  
1277 additional systems of records and SORN guidance, in coordination with the DHA Privacy  
1278 Office, regarding periodic system review, amendments, alterations, or deletions set forth  
1279 by the DoD Privacy Act Issuances, Office of Management and Budget (OMB)  
1280 Memorandum 99-05, Attachment B, OMB Circular A-130, and Privacy Act of 1974  
1281 requirements applicable to contractors operating systems of records on behalf of federal  
1282 agencies. The contractor shall promptly advise the DHA Privacy Office of changes in  
1283 systems of records or their use that may require a change in the SORN.

## 1284 **29. Privacy Impact Assessment (PIA)**

1285 If DHA data is stored on a contractor owned system, a PIA is required from the  
1286 contractor.

## 1287 **30. Data Sharing Agreements (DSA)**

1288 The contractor shall consult with the DHA Privacy Office to determine if the contractor  
1289 must obtain a DSA or Data Use Agreement (DUA) when DHA data will be accessed,  
1290 used, disclosed, or stored, to perform the requirements of any resulting task orders under  
1291 this contract.

1292 The contractor shall comply with the permitted uses established in a DSA/DUA to  
1293 prevent the unauthorized use and/or disclosure of any PII/PHI, in accordance with the  
1294 HIPAA Rules and DoD HIPAA Issuances. Likewise, the contractor shall comply with  
1295 the DoD Privacy Act Issuances.

1296 Prior to using any data involving PHI for research purposes, as defined by HIPAA, the  
1297 contractor must gain approval from the DHA Privacy Board. Thus, the contractor shall  
1298 comply with DHA Privacy Board requests for additional documentation.

1299 To begin the DSA request process, the contractor shall submit a DSA Application  
1300 (DSAA) to the DHA Privacy Office. Upon approval, the requester shall enter into one of  
1301 the following agreements, depending on the data involved:

- 1302 • DSA for De-Identified Data
- 1303 • DSA for PHI
- 1304 • DSA for PII Without PHI
- 1305 • DUA for Limited Data Set

1306 DSAs executed for contract support will expire after one (1) year or at the end of the  
1307 contract option year, whichever comes first. If the contractual use of DHA data will  
1308 continue after the DSA expiration date, the contractor shall submit a DSA Renewal  
1309 Request template to the Privacy Office; however, if the DSA will not be renewed, the  
1310 contractor shall close the DSA by providing a Certificate of Data Disposition (CDD) to  
1311 the DHA Privacy Office.

1312 This contract incorporates by reference the Protection of Human Subject Research clause  
1313 in the DFARS at 48 CFR 252.235-7004. A separate DFARS provision, 48 CFR  
1314 235.072(e), requires that the clause be incorporated in contracts that include or may  
1315 include research involving human subjects in accordance with 32 CFR 219, DoDI  
1316 3216.02, and 10 U.S.C. 980, including research that meets exemption criteria under 32  
1317 CFR 219.101(b). The clause applies to solicitations and contracts awarded by any DoW  
1318 component, regardless of mission or funding Program Element Code. Thus, in the event  
1319 a contractor participates in a study or demonstration project or other activity that involves  
1320 human subject research, then the contractor shall comply with Protection of Human  
1321 Subject Research clause. Contracting Officers may not determine whether an activity is  
1322 exempt from human subject research requirements. If contractor activity appears to  
1323 involve human subject research, then the contractor shall consult the DHA Privacy  
1324 Office, which may contact the Research Regulatory Oversight Office in the Office of the  
1325 Under Secretary of Defense for Personnel and Readiness (OUSD(P&R)).

## 1326 **31. Privacy Act of HIPAA Training**

1327 The contractor shall ensure that its entire staff, including subcontractors and consultants  
1328 that perform work on task orders issued under this contract receive training on the  
1329 Privacy Act, HIPAA, and the federal regulations on confidentiality of substance use  
1330 disorder patient records, 42 CFR Part 2. Refer to RFO clause 52.224-3 regarding specific  
1331 requirements for Privacy Training appropriate to the contractor's scope of involvement  
1332 with DHA's PHI and its regulatory responsibilities as either a Covered Entity or Business  
1333 Associate.

1334 The contractor shall ensure all employees and subcontractors supply a certificate of all  
1335 training completion to the COR within 30 days of being assigned and on an annual basis  
1336 based on the trainee's birth month thereafter.

## **32. HIPAA Business Associate General Provisions**

The contractor meets the definition of Business Associate, and DHA meets the definition of a covered entity under the HIPAA Rules and the DoD HIPAA Issuances. Therefore, a Business Associate Agreement (BAA) between the contractor and DHA is required to comply with the HIPAA Rules and the DoD HIPAA Issuances. The contractor shall use the DoD BAA, which shall be used by all organizational entities within the DoW, referred to collectively as the “DoD Components”, located at, <https://www.health.mil/Military-Health-Topics/Privacy-and-Civil-Liberties/Privacy-Contract-Language/HIPAA-Compliant-Business-Associate-Agreement-for-the-MHS>.

## **33. Breach Response**

### **33.1 Definitions related to Breach response**

The sections below provide definitions related to a Breach response.

#### **33.1.1 Breach**

Breach means a loss of control, compromise, unauthorized disclosure, unauthorized acquisition, or any similar occurrence where: (1) a person other than an authorized user accesses or potentially accesses PII; or (2) an authorized user accesses or potentially accesses PII for an other-than-authorized purpose. The foregoing definition is based on the definition of breach in DoDM 6025.18. Breaches are classified as either possible or confirmed (see the following two definitions) and as either cyber or non-cyber (i.e., involving either electronic PII/PHI or paper/oral PII/PHI).

#### **33.1.2 Possible Breach**

A possible breach is an incident where the possibility of unauthorized access is suspected (or should be suspected) and has not been ruled out. For example, if a laptop containing PII/PHI is lost, and the contractor does not initially know whether the PII/PHI was encrypted, then the incident must initially be classified as a possible breach, because it is impossible to rule out the possibility of unauthorized access to the PII/PHI. In contrast, that possibility can be ruled out immediately, and a possible breach has not occurred, when misdirected postal mail is returned unopened in its original packaging. However, if the intended recipient informs the contractor that an expected package has not been received, then a possible breach exists until and unless the unopened package is returned to the contractor. In determining whether unauthorized access should be suspected, the contractor shall consider at least the following factors:

- How the event was discovered;
- Did the information stay within the covered entity’s control;
- Was the information actually accessed/viewed; and

- Ability to ensure containment (e.g., recovered, destroyed, or deleted).

### 1374 **33.1.3 Confirmed Breach**

1375 A confirmed breach is an incident in which it is known that unauthorized access could  
1376 occur. For example, if a laptop containing PII/PHI is lost and the contractor knows that  
1377 the PII/PHI is unencrypted, the contractor should classify and report the incident as a  
1378 confirmed breach, because unauthorized access could occur due to the lack of encryption  
1379 (the contractor knows this even without knowing whether or not unauthorized access to  
1380 the PII/PHI has actually occurred). If the laptop is subsequently recovered and forensic  
1381 investigation reveals that files containing PII/PHI were never accessed, the possibility of  
1382 unauthorized access can be ruled out, and the contractor should re-classify the incident as  
1383 a non-breach incident.

### 1384 **33.1.4 HHS Breach**

1385 A HHS breach is an incident that satisfies the definition of breach in Section 164.402 of  
1386 the HIPAA Breach Rule. The text of the HHS definition states:

1387 Breach means the acquisition, access, use, or disclosure of PHI in a manner not permitted  
1388 under subpart E of this part [i.e. the HIPAA Privacy Rule] which compromises the  
1389 security or privacy of the PHI.

1390 HHS breach excludes:

- 1391 • Any unintentional acquisition, access, or use of PHI by a workforce member or  
1392 person acting under the authority of a DoW covered entity or a business associate,  
1393 if such acquisition, access, or use was made in good faith and within the scope of  
1394 authority and does not result in further use or disclosure in a manner not permitted  
1395 under the HIPAA Privacy Rule.
- 1396 • Any inadvertent disclosure by a person who is authorized to access PHI at a DoW  
1397 covered entity or business associate to another person authorized to access PHI at  
1398 the same DoW covered entity or business associate, or organized health care  
1399 arrangement in which the DoW covered entity participates, and the information  
1400 received as a result of such disclosure is not further used or disclosed in a manner  
1401 not permitted the HIPAA Privacy Rule.
- 1402 • A disclosure of PHI where a DoW covered entity or business associate has a good  
1403 faith belief that an unauthorized person to whom the disclosure was made would  
1404 not reasonably have been able to retain such information.

1405 Except as provided in this definition, an acquisition, access, use, or disclosure of PHI in a  
1406 manner not permitted under this issuance is presumed to be a breach unless the DoW  
1407 covered entity or business associate, as applicable, demonstrates that there is a low  
1408 probability the PHI has been compromised based on a risk assessment of at least the  
1409 following factors:

- 1410 • The nature and extent of the PHI involved, including the types of identifiers and
- 1411 the likelihood of re-identification;
- 1412 • The unauthorized person who used the PHI or to whom the disclosure was made;
- 1413 • Whether the PHI was actually acquired or viewed; and
- 1414 • The extent to which the risk to the PHI has been mitigated.

### 1415 **33.1.5 Cybersecurity Incident**

1416 A cybersecurity incident is a violation or imminent threat of violation of computer  
1417 security policies, acceptable use policies, or standard security practices, with respect to  
1418 electronic PII/PHI. A cybersecurity incident may or may not involve a breach of PII/PHI.  
1419 For example, a malware infection would be a possible breach if it could cause  
1420 unauthorized access to PII/PHI. However, if the malware only affects data integrity or  
1421 availability (not confidentiality), then a non-breach cybersecurity incident has occurred.

### 1422 **33.2 General**

1423 The breach response requirements shall be followed for all unauthorized use or disclosure  
1424 of information regardless of whether the information is PHI or solely PII.

1425 Because DoW defines “breach” to include possible (suspected), as well as actual  
1426 (confirmed) breaches, the contractor shall implement these breach response requirements  
1427 immediately upon the contractor’s discovery of a possible breach. These procedures  
1428 focus on the first two steps (breach identification and reporting) of a comprehensive  
1429 breach response program, but also require addressing the remaining steps: containment,  
1430 mitigation (which includes individual notification), eradication, recovery, and follow-up.

1431 The contractor shall establish internal processes for carrying out the procedures set forth  
1432 below. These processes shall assign responsibility for investigating, classifying,  
1433 reporting and otherwise responding to breaches and cybersecurity incidents. The  
1434 contractor should consult with the DHA Privacy Office where guidance is needed, such  
1435 as when the contractor is uncertain whether a discovered breach is the contractor’s  
1436 responsibility (e.g., if the contractor discovers a breach not caused by the contractor), or  
1437 how the contractor is to classify an incident (breach vs. non-breach, confirmed vs.  
1438 possible, cyber vs. non-cyber). Under no circumstances will a contractor delay reporting  
1439 a confirmed or possible breach to the DHA Privacy Office beyond the 24-hour deadline.  
1440 In conjunction with its initial investigation, the contractor shall immediately take steps to  
1441 minimize any impact from the occurrence, proceed with further investigation of any  
1442 relevant details (such as root causes, vulnerabilities exploited), and initiate further breach  
1443 response steps.

1444 In the event of a cybersecurity incident not involving a PII/PHI breach, the contractor  
1445 shall follow applicable DoW cybersecurity and NIST requirements, which include United  
1446 States Computer Emergency Readiness Team (US-CERT) reporting (see paragraph 9.3)..  
1447 If at any point a contractor finds that a cybersecurity incident involves a PII/PHI breach  
1448 (possible or confirmed), the contractor shall immediately initiate the reporting procedures

set forth below. The contractor shall also continue to follow any required cybersecurity incident response procedures and other applicable DoW cybersecurity requirements.

Contractors shall require subcontractors who discover a possible breach or cybersecurity incident to initiate the incident response requirements herein by reporting the incident to the contractor immediately after discovery. The time of that report to the contractor shall trigger the contractor's DHA Privacy Office reporting deadline (24 hours) under paragraph 9.3.2. If a cybersecurity incident is involved, the contractor's deadline for US-CERT reporting (1 hour) runs from the time the incident is confirmed. The contractor shall require the subcontractor to cooperate as necessary to meet these deadlines, maintain records, and otherwise enable the contractor to complete the breach response requirements herein. Alternatively, the contractor and subcontractor may agree that the subcontractor shall report directly to US-CERT and the DHA Privacy Office, and that the subcontractor shall be responsible for completing the response process, provided that such agreement requires the subcontractor to inform the contractor of the incident and the subsequent response actions.

Contractors shall maintain records of all breach and cybersecurity incident investigations, regardless of the outcome. Investigations identifying unauthorized disclosures must be logged for HIPAA and Privacy Act disclosure accounting purposes, whether or not individual notification is required under the HIPAA Breach Rule.

Contractors, when acting as HIPAA-covered entities, and not as business associates, are not subject to the breach response requirements herein. However, such contractors are subject to both the HIPAA Breach Rule (applicable to them in their capacity as covered entities) and DoW cybersecurity requirements (applicable to them in their capacity as DoW contractors).

### **33.3 Reporting Provisions**

Immediately upon discovery of a possible or confirmed breach or cybersecurity incident, the contractor shall initiate an investigation. If the incident involves electronic PII/PHI, and if the investigation finds a confirmed breach or cybersecurity incident, the contractor shall report it, within 1 hour of confirmation, to the US-CERT Incident Reporting System at <https://forms.uscert.gov/report/>, as required by the Department of Homeland Security (DHS).

Note: DHS no longer requires US-CERT reporting of non-cyber breaches or unconfirmed electronic breaches. However, DHS permits US-CERT reporting of unconfirmed cyber-related incidents on a voluntary basis. Thus, if a contractor is uncertain whether a possible cyber-related incident should be treated as confirmed and thus reportable, the contractor may voluntarily report the incident.

Before submission to US-CERT, the contractor shall save a copy of the on-line report. After submitting the report, the contractor shall record the US-CERT incident reporting

1487 number, which shall be included in the initial report to the DHA Privacy Office as  
1488 described in paragraph 9.3.2.

1489 Note: Regardless of whether an incident is confirmed as a breach, the contractor must  
1490 also investigate whether the incident impacts data integrity or availability of PII/PHI. If  
1491 such impact is confirmed, then the incident is reportable to US-CERT as a cybersecurity  
1492 incident. For guidance on investigating the impact on data integrity and availability, refer  
1493 to DoW cybersecurity and NIST guidance.

1494 The contractor shall provide any updates to the initial US-CERT report by email to  
1495 soc@us-cert.gov, with the Reporting Number in the subject line. The contractor shall  
1496 provide a copy of the initial or updated US-CERT report to the DHA Privacy Office if  
1497 requested. Contractor questions about US-CERT reporting shall be directed to the DHA  
1498 Privacy Office, not the US-CERT office.

1499 In addition to US-CERT reporting, the contractor shall report to the DHA Privacy Office  
1500 by submitting the form specified below within 24 hours of discovery of a breach  
1501 (possible or confirmed), unless the breach falls within a category that the Privacy Office  
1502 has determined to be not reportable. This 24-hour period runs from the time of  
1503 discovery, unlike the one-hour US-CERT reporting period, which runs from the time a  
1504 cybersecurity incident is confirmed. Thus, depending on the time period needed to  
1505 confirm, the report to the DHA Privacy Office may be due either before or after the US-  
1506 CERT report.

1507 The breach report form required within the 24-hour deadline shall be sent by e-mail to:  
1508 DHA.PrivacyOfficer@mail.mil. The contractor shall also e-mail the report to the  
1509 Contracting Officer, the COR, and its usual point of contact at the applicable Program  
1510 Office. Encryption is not required, because reports and notices shall not contain PII/PHI.  
1511 If electronic mail is not available, telephone notification is also acceptable at 703-275-  
1512 6363, but all notifications and reports delivered telephonically must be confirmed in  
1513 writing as soon as technically feasible.

1514 Contractors shall prepare the breach reports required within the 24-hour deadline by  
1515 completing the Breach Reporting Department of Defense Form DD 2959 (Breach of PII  
1516 Report), available at  
1517 <https://www.esd.whs.mil/Portals/54/Documents/DD/forms/dd/dd2959.pdf>. For non-  
1518 cyber incidents without a US-CERT number, the contractor shall assign an internal  
1519 tracking number and include that number in Box 1.e of the DD Form 2959. The  
1520 contractor shall coordinate with the DHA Privacy Office for subsequent action, such as  
1521 beneficiary notification, and mitigation. The contractor must promptly update the DD  
1522 Form 2959 as new information becomes available.

1523 When a Breach Report Form initially submitted is incomplete or incorrect due to  
1524 unavailable information, or when significant developments require an update, the  
1525 contractor shall submit a revised form or forms promptly after the new information  
1526 becomes available, stating the updated status and previous report date(s) and showing any

1527 revisions or additions in red text. The contractor shall provide updates to the same parties  
1528 as required for the initial Breach Report Form.

#### 1529 **33.4 Individual Notification Provisions**

1530 If the DHA Privacy Office determines that individual notification is required, the  
1531 contractor shall provide written notification to beneficiaries affected by the breach as  
1532 soon as possible, but no later than 10 working days after the breach is discovered and the  
1533 identities and addresses of the beneficiaries are ascertained. The 10-day period begins  
1534 when the contractor is able to determine the identities (including addresses) of the  
1535 beneficiaries whose records were impacted. If notification cannot be accomplished  
1536 within 10 working days, the contractor shall notify the DHA Privacy Office.

1537 The contractor's proposed notification to be issued to the affected beneficiaries shall be  
1538 submitted to the DHA Privacy Office for approval. The notification to beneficiaries shall  
1539 include, at a minimum, the following:

- 1540 • Specific data elements;
- 1541 • Basic facts and circumstances;
- 1542 • Recommended precautions the beneficiary can take;
- 1543 • Federal Trade Commission (FTC) identity theft hotline information; and
- 1544 • Any mitigation support services offered, such as credit monitoring.

1545 Contractors shall ensure any envelope containing written notifications to affected  
1546 individuals are clearly labeled to alert the recipient to the importance of its contents, e.g.,  
1547 "Data Breach Information Enclosed," and that the envelope is marked with the identity of  
1548 the contractor and/or subcontractor organization that suffered the breach.

1549 If media notice is required, the contractor will submit a proposed notice and suggested  
1550 media outlets for the DHA Privacy Office review and approval (which will include  
1551 coordination with the DHA Communications Division).

#### 1552 **33.5 Application of Breach Requirements**

1553 In the event the contractor is uncertain on how to apply the above requirements, the  
1554 contractor shall consult with the Contracting Officer, who will consult with the Privacy  
1555 Office as appropriate when determinations on applying the above requirements are  
1556 needed.

1557 The contractor shall, at no cost to the government, bear any costs associated with a  
1558 breach of PII/PHI that the contractor has caused or is otherwise responsible for  
1559 addressing.

## **34. Reporting Requirements**

### **34.1 Integrated Master Schedule (IMS)**

The contractor shall develop, maintain, and submit an Integrated Master Schedule (IMS) that reflects the contractor's detailed plan for executing the contract scope. The IMS shall be logic-driven, resource-loaded where applicable, and maintained in accordance with the approved Work Breakdown Structure (WBS). The IMS shall identify all activities necessary to meet contract requirements and shall support Government schedule integration, performance assessment, and risk management.

The IMS shall be fully logic-driven, using predecessor and successor relationships to establish activity sequencing. The use of hard constraints, date overrides, and excessive lags shall be minimized and clearly justified in the IMS narrative. All milestones shall have at least one predecessor and one successor, except for contract start and contract completion milestones. The IMS shall contain a valid, traceable critical path that represents the longest sequence of logically related activities driving contract completion. Activity durations shall be realistic, based on the scope of work and historical performance, where applicable, and shall avoid excessive use of long-duration activities (greater than 40 working days). Long duration activities shall be broken into small activities of work to maintain schedule integrity.

The IMS shall include all contractor activities required to support Government reviews, approvals, test events, deliveries, and acceptance activities. The contractor IMS shall be structured to allow integration with the Government's program-level Integrated Master Schedule (IMS) for oversight and reporting purposes. Each IMS submission shall be accompanied by a schedule narrative that describes schedule status, identifies changes since the prior submission, explains critical path drivers, documents assumptions, and highlights schedule risks and mitigation activities.

The IMS shall be developed and maintained in accordance with generally accepted schedule management practices, including Government Accountability Office (GAO) Schedule Assessment Guide best practices and Defense Contract Management Agency (DCMA) schedule quality guidance. The Government may assess the IMS using recognized schedule quality metrics to evaluate logic integrity, critical path validity, and overall schedule health. The individual projects schedule within the IMS shall not be baselined until Government review and approval is received. All changes to scope or re-baselining requests must be processed through the Government's change control process and approved by the Government Contracting Officer, Program Manager or designee.

If the Government determines that the IMS does not meet contractual or quality requirements, the contractor shall correct identified deficiencies and resubmit the IMS within a timeframe specified by the Government, at no additional cost. IMS submissions that are not logic-driven, contain excessive constraints or date overrides, lack a valid critical path, or otherwise fail to support Government schedule integration and oversight may be rejected by the Government. Acceptance of the IMS does not relieve the contractor of responsibility for maintaining schedule accuracy and realism.

## **34.2 PEO DHMS Cost, Schedule, Performance (CSP) Report**

The contractor shall provide the PEO DHMS Cost, Schedule, Performance (CSP) Report (CDRL A006) for each task order issued under this contract monthly in accordance with the PEO DHMS Cost, Schedule, Performance (CSP) Report Template.

Include an Integrated Master Schedule (IMS) (CDRL A011) in support of the Cost, Hour, Technical Data Report.

The contractor shall work with the Government to mutually agree to baseline the detailed IMS and financial plan within 60 days of task order awards under this contract (DACA). The contractor shall work with the Government to mutually agree to any changes to the baselined detailed financial plan thereafter.

The contractor shall deliver the PEO DHMS CSP Report by the 15th of each month for the prior month.

## **34.3 Contractor Work Breakdown Structure (CWBS)**

Contractor Work Breakdown Structure (CWBS) and CWBS Dictionary (CDRL A007) are needed for adequate management and control of the contractual effort, in accordance with the MIL-STD-881F, Department of Defense Standard: Work Breakdown Structures (WBSs) for Defense Materiel Items.

Obtain Government approval prior to making any changes to the CWBS and CWBS Dictionary. Updates to the CWBS for effort requiring a change to the CWBS structure should be completed 30 days before commencing work where new CWBSs will be used.

## **34.4 Cost and Software Data Reporting (CSDR)**

The contractor shall comply with the Cost and Software Data Reporting (CSDR) guidance in accordance with the CSDR Plan (DD Form 2794) and DoD 5000.04-M-1, Cost and Software Data Reporting Manual. The contractor shall:

- (1) Conduct a Cost and Software Data Reporting Kickoff Meeting within 30 days after contract award.
- (2) Conduct a Cost and Software Data Reporting Readiness Review Meeting within 90 days after contract award.
  - (a) Provide Presentation Materials to describe the approach to fulfilling contractual obligations with the reporting requirements.
- (3) Ensure CSDR requirements are flowed down to any lower tier contractor that has a contract value over \$20 million or is designated by the Government as doing high risk, high value, or high technical interest work on the contract.
- (4) Incorporate subcontractor CSDR data in its CSDR submission.
- (5) Provide a Cost and Hour Report (Flexfile) (A008) and a Technical Data Report (TDR) (A009), in accordance with the CSDR Plan (Attachment – DHMS

- 1637 Deployment\_DD2794 CSDR Plan).
- 1638 (6) Provide and maintain the Contractor Work Breakdown Structure (CWBS) and
- 1639 CWBS Dictionary (A007), which are components of the FlexFile and are needed
- 1640 for adequate management and control of the contractual effort, in accordance with
- 1641 the MIL-STD-881F, Department of Defense Standard: Work Breakdown
- 1642 Structures (WBSs) for Defense Materiel Items.
- 1643 (a) Obtain Government approval prior to making any changes to the
- 1644 CWBS and CWBS Dictionary. Updates to the CWBS for effort
- 1645 requiring a change to the CWBS structure should be completed 30
- 1646 days before commencing work where new CWBSs will be used.

1647 Note: CSDR applies when a task order (or group of related task orders) exceeds the

1648 \$50M threshold.

### 1649 **34.5 Monthly Progress Report**

1650 The contractor shall prepare and submit Monthly Progress Reports (D006) for each task

1651 order as specified in the task order PWS. Each Monthly Progress Report shall contain, at

1652 a minimum, the following information:

- 1653 1) Executive Summary: a brief statement of the overall project status, covering
- 1654 accomplished activities, objectives of efforts, summary results of efforts,
- 1655 identification of major problems or deficiencies and their impact, along with
- 1656 recommended solutions.
- 1657 2) Risk Summary: status of existing risks and any new risks identified during the
- 1658 reporting period, the potential impact of each risk, and the plan to mitigate each
- 1659 risk.
- 1660 3) Personnel and Training Status:
- 1661 a. Role Assignments: A description of tasks and percentage completed and
- 1662 planned for each role.
- 1663 b. Role Provisioning: The total number and percentage of users who have
- 1664 completed required training.
- 1665 4) Change Management: A status of change management activities and any
- 1666 recommendations for improvements.
- 1667 5) Site Implementation Status: include a list of users certified as trainers (e.g.,
- 1668 clinical champions, super users), a competency test report, checklist updates,
- 1669 status of user provisioning (i.e., users with access by name and type; list of users
- 1670 requiring training), and a summary of the end user evaluation report.
- 1671 6) Metrics: provide a summary of performance against Service Level Agreements
- 1672 (SLAs) for the past six months, with details on how any missed thresholds are
- 1673 being addressed. It shall also include a reliability and availability trend analysis.
- 1674 7) Personnel Security Report: provide the percentage of personnel meeting security
- 1675 requirements (e.g., access to Government facility/installation, access to
- 1676 information technology systems, mandatory security training).

### 35. Quality Assurance (QA)

The Government will evaluate the contractor's performance under each resulting task order in accordance with the Quality Assurance Surveillance Plan (QASP). This plan provides a systematic method for the Government to evaluate performance and to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

### 36. Technical Exhibits

The contractor shall deliver all data and information required by the CDRLs listed in the attached Exhibit A: Contract Data Requirements List (CDRL) document(s), in accordance with the schedule and requirements specified therein. Unless otherwise specified, day means calendar day.

#### Deliverables Schedule

| Deliverable                           | Due Date or Frequency                | Medium/Format           | Submit To                                   | PWS Reference |
|---------------------------------------|--------------------------------------|-------------------------|---------------------------------------------|---------------|
| [CDRL A001]<br>– Quality Control Plan | 30 days after task order award       | Microsoft Office format | PM & COR                                    | 3.1           |
| [CDRL A002]<br>– Training Curriculum  | Specified in task order              | Microsoft Office format | PM & COR                                    | 3.3.4.1       |
| [CDRL A003]<br>– Deployment Approach  | Five (5) days after task order award | Microsoft Office format | PM & COR                                    | 3.2.1         |
| [CDRL A004]<br>– Transition-In Plan   | Five (5) days after task order award | Microsoft Office format | PM & COR                                    | 5.            |
| [CDRL A005]<br>– Transition-Out Plan  | 60 days prior to close of task order | Microsoft Office format | PM & COR                                    | 6.            |
| [CDRL A006]<br>- PEO CSP Report       | 15 <sup>th</sup> of each month       | Excel Template          | COR & email box: dha.ncr.PEO-DHMS.list.csp- | 34.2          |

|                                                      |                                                                                       |                                   |                                                                                   |             |
|------------------------------------------------------|---------------------------------------------------------------------------------------|-----------------------------------|-----------------------------------------------------------------------------------|-------------|
|                                                      |                                                                                       |                                   | data-reporting-owners@health.mil                                                  |             |
| [CDRL A007]<br>- Contractor Work Breakdown Structure | Specified in task order                                                               | Microsoft Excel                   | COR & email box: dha.ncr.PEO-DHMS.list.csp-data-reporting-owners@health.mil       | 34.3        |
| [CDRL A008]<br>– Cost and Hour Report                | 60 days after task order award                                                        | Microsoft Excel or CSV            | CADE; COR & email box: dha.ncr.PEO-DHMS.list.csp-data-reporting-owners@health.mil | 34.4        |
| [CDRL A009]<br>– Technical Data Report               | 60 days after task order award                                                        | See DI-MGMT-82165                 | COR & email box: dha.ncr.PEO-DHMS.list.csp-data-reporting-owners@health.mil       | 34.4        |
| [CDRL A010]<br>– Implementation Plan                 | Specified in task order                                                               | Microsoft Office format           | COR/ PMO                                                                          | 3.2.1       |
| [CDRL A011]<br>– Integrated Master Schedule          | 15 days after task order award; biweekly thereafter or as requested by the Government | Microsoft Project, Excel, and PDF | COR/ PMO                                                                          | 3.2.1, 34.1 |

1690

### 1691 **37. Non-Technical Data Deliverables**

1692 The contractor shall deliver all data and information required by the non-technical data  
1693 deliverables listed in the table below, in accordance with the schedule and requirements  
1694 specified therein. Unless otherwise specified, day means calendar day.

| Non-Technical Data Deliverable | Due Date or Frequency | Submit To | PWS Reference |
|--------------------------------|-----------------------|-----------|---------------|
|--------------------------------|-----------------------|-----------|---------------|

|                                               |                                                                                      |                                                           |         |
|-----------------------------------------------|--------------------------------------------------------------------------------------|-----------------------------------------------------------|---------|
| [D001] – Presentation Materials               | Within 2 business days of meeting or as requested by the Government                  | COR and key stakeholders; Attached to meeting invitations | 3.1     |
| [D002] – Meeting Minutes                      | Within 2 business days of meeting or as requested by the Government                  | COR and key stakeholders                                  | 3.1     |
| [D003] – Staffing Plan                        | Within 10 days of task order award                                                   | COR and key stakeholders                                  | 3.1     |
| [D004] – Staff Training Certificates          | Upon completion of training                                                          | COR                                                       | 23.1    |
| [D005] – NDAs                                 | Immediately upon task order award; no later than first day of employment             | COR                                                       | 23.3    |
| [D006] – Monthly Progress Report              | Within 30 days of task order award; the 5 <sup>th</sup> of the month thereafter      | COR and key stakeholders                                  | 34.5    |
| [D007] – User Training Completion Report      | Weekly after the start of training; and as a part of Deployment Readiness assessment | COR and key stakeholders                                  | 3.3.4.2 |
| [D008] – Deployment Readiness Assessment      | Specified in task order                                                              | COR and key stakeholders                                  | 3.2.1   |
| [D009] – Product Configuration Data           | After the Implementation Plan; specified in task order                               | COR and key stakeholders                                  | 3.2.1   |
| [D010] – Post-Deployment Stabilization Report | Specified in task order                                                              | COR and key stakeholders                                  | 3.2.3   |
| [D011] – DD Form 1149                         | Specified in task order                                                              | COR and key stakeholders                                  | 3.2.2.3 |
| [D012] – Product Validation Plan              | Specified in task order                                                              | COR and key stakeholders                                  | 3.2.2.1 |